

Buckinghamshire County Council Act, 1957

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CHAPTER xviii

An Act to confer further powers on the Buckinghamshire County Council and local authorities of the county of Buckingham in relation to lands and highways and the local government improvement health and finances of the county to make further provision with reference to the Buckinghamshire Quarter Sessions and for other purposes. [17th July 1957.]

WHEREAS—

(1) It is expedient that further and better provision should be made with reference to lands and highways and for the local government improvement health and finances of the administrative county of Buckingham and that the powers of the county council of that administrative county (hereinafter referred to as “the Council”) and of the local authorities within that administrative county should be enlarged and extended as by this Act provided:

(2) It is expedient to make further provision with reference to the Buckinghamshire Quarter Sessions:

(3) It is expedient that the other provisions contained in this Act be enacted:

(4) The purposes of this Act cannot be effected without the authority of Parliament:

(5) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen’s most Excellent Majesty by and

with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I

PRELIMINARY

Short title. 1. This Act may be cited as the Buckinghamshire County Council Act 1957.

Division of Act into Parts. 2. This Act is divided into Parts as follows:—
Part I.—Preliminary.
Part II.—Lands.
Part III.—Highways.
Part IV.—Public health.
Part V.—Weights and measures.
Part VI.—Finance.
Part VII.—Miscellaneous.
Part VIII.—Protective provisions.
Part IX.—General.

Incorporation of Lands Clauses Acts. 3. The Lands Clauses Acts except sections 127 to 132 and 150 and 151 of the Lands Clauses Consolidation Act 1845 (so far as such Acts are applicable for the purposes of and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act:

Provided that the bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be sufficient without the addition of the sureties mentioned in that section.

Interpretation. 4.—(1) In this Act the several words and expressions to which meanings are assigned by sections 110 and 343 of the Act of 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless otherwise expressly enacted or unless the subject or context otherwise requires the following expressions have the meanings hereby respectively assigned to them:—

“ Act of 1933 ” means the Local Government Act 1933;

“ Act of 1936 ” means the Public Health Act 1936;

“ Act of 1947 ” means the Town and Country Planning Act 1947;

“ Act of 1950 ” means the Public Utilities Street Works Act 1950;

“ area gas board ” means any area gas board established under the Gas Act 1948;

“ authorised security ” means any mortgage stock bond or other security which the Council or a local authority are for the time being authorised to grant create or issue or

“commission” means the British Transport Commission;
“contravention” includes a failure to comply and
“contravene” shall be construed accordingly;

“ county ” means the administrative county of Buckingham:

“county road” has the same meaning as in Part III of the Local Government Act 1929:

“ district ” means a borough or an urban or rural district in the county:

“ food ” has the meaning assigned thereto by section 135 of the Food and Drugs Act 1955;

“ highway authority ” means—

(b) in the case of a county road except a claimed road and in the case of any other road for the time being maintained by the Council the Council;

(c) in the case of a public path within the meaning of Part IV of the National Parks and Access to the Countryside Act 1949 in a rural district the Council;

(d) in the case of any other highway (not being a highway repairable by the commission) the local authority for the district in which the highway is situate;

“Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 by Part V of the Act of 1947

PART I
—cont.

- by the Lands Tribunal Act 1949 by the Town and Country Planning Act 1954 and by this Act;
- “local authority” means the council of a district;
- “magistrates’ court” has the same meaning as in the Magistrates’ Courts Act 1952;
- “Minister” means the Minister of Housing and Local Government;
- “parish council” means the parish council of a rural parish in the county or where there is no parish council the parish meeting of such parish;
- “rural district” means a rural district in the county;
- “rural district council” means the council of a rural district;
- “statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or reborrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any enactment or sanction of any government department made or given or to be made or given by authority of any enactment but does not include the power to borrow by way of temporary loan or overdraft which is conferred by paragraph (a) of subsection (1) of section 215 of the Act of 1933;
- “statutory security” means any security in which trustees are for the time being authorised by law to invest trust moneys and any mortgage bond debenture debenture stock stock or other security created by the council of any county or county district or by any authority being a local authority as defined by section 34 of the Local Loans Act 1875 but does not include any annuities rentcharges or securities transferable by delivery;
- “statutory undertakers” means any company body or person authorised by any Act of Parliament or order having the force of an Act to supply electricity gas or water;
- “street” and “road” have the meanings assigned to the word “street” in the Act of 1936;
- “urban district” means a borough or an urban district in the county;
- “verge” includes land situate between two carriageways and any part of a street which is not a carriageway footway or cycle track.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

(4) References in this Act to a subsequent offence against any provision of this Act shall be construed as references to an offence against that provision committed after a previous conviction for such an offence.

PART I
—cont.

5. Subject to the provisions of this Act the sections of which the numbers and marginal notes are set out in the First and Second Schedules to this Act shall not apply to a rural district or to any part thereof or be exercisable by a rural district council unless and until in the case of the sections set out in the said First Schedule they have adopted those sections in accordance with section 6 (Adoption by rural district councils of certain provisions of Act) of this Act or in the case of the sections set out in the said Second Schedule the sections have been applied to their districts pursuant to section 7 (Application of certain provisions of Act to rural districts) of this Act.

6.—(1) A rural district council may adopt in respect of their district or a part thereof all or any of the sections of this Act of which the numbers and marginal notes are set out in Part I of the First Schedule to this Act.

Certain provisions of Act not to operate in rural districts until adopted or applied.
Adoption by rural district councils of certain provisions of Act.

(2) The adoption by a rural district council of all or any of the said sections of this Act shall be by a resolution of that council passed in accordance with the provisions contained in Part II of the said First Schedule and upon a resolution of adoption coming into operation the provisions of this Act to which it extends shall apply to the district of that council or to the part thereof to which the said resolution relates.

7.—(1) The Minister may on the application of a rural district council by order to be published in the London Gazette or in such other manner as he may direct apply to the district of that council or to any part thereof any of the sections of this Act of which the numbers and marginal notes are set out in the Second Schedule to this Act and upon such order coming into force the provisions of this Act to which it relates shall be in force within the district or within such part thereof from such date as may be specified in that behalf in the order.

Application of certain provisions of Act to rural districts.

(2) Before any application is made to the Minister for an order under this section notice of the intended application specifying the provisions of this Act in respect of which an order is desired shall be published by the rural district council intending to apply for the order once at least in each of two successive weeks in one or more newspapers circulating in their district.

PART II LANDS

8.—(1) The Council may acquire by agreement (whether by way of purchase lease or exchange) any land whether situate within or without the county for or in connection with the

Further powers for acquisition of lands.

PART II
—cont.

purposes of any of their powers or duties or for the benefit improvement or development of the county notwithstanding that the land is not immediately required.

(2) Any land acquired under this section may until it is appropriated under section 163 of the Act of 1933 be used for the purpose of any of the functions of the Council and until it is so appropriated all expenses incurred by them in respect of the land shall be payable out of the county fund.

(3) The Council shall not acquire land under section 158 of the Act of 1933.

Power to
reinstate
owners or
occupiers
of property.

9.—(1) The Council may enter into and carry into effect an agreement or arrangement with the owner or occupier of any land acquired under this Act with respect to his reinstatement elsewhere.

(2) Any such agreement may provide for the exchange of land and for that purpose the Council may pay or receive money for equality of exchange.

Appropriation
and disposal
of land.

10.—(1) Section 163 of the Act of 1933 shall apply to any land acquired by the Council under this Act whether or not the land is required for the purposes for which it was acquired or has since been appropriated or is being used.

(2) The Council may sell lease exchange (paying or receiving or without paying or receiving money for equality of exchange) or otherwise dispose of any such land as aforesaid in such manner and for such consideration and on such terms and conditions as they think fit (whether in consideration of the execution of works or of the payment of a capital sum or of an annual rent or of payment in any other form):

Provided that the Council shall not without the consent of the Minister sell lease exchange or otherwise dispose of any such land for a consideration less than the current market value of the land but a purchaser or lessee shall not be concerned to inquire whether such consent is necessary or has been obtained.

(3) Nothing in this section shall authorise the disposal of any land by the Council whether by sale lease exchange or other disposition in breach of any trust covenant or agreement binding upon the Council.

(4) Sections 164 and 165 of the Act of 1933 shall not apply to any land acquired by the Council under this Act.

Application of
capital money.

11. Section 166 of the Act of 1933 shall apply to capital money received by the Council in respect of the sale leasing exchange or other disposition of land under section 10 (Appropriation and disposal of land) of this Act as it applies to capital money received in respect of a transaction under section 164 or section 165 of that Act.

PART II
—*cont.*
**Undertakings
and agreements
binding
successive
owners.**

- successive
owners.

(2) Any such undertaking or agreement shall be treated as a local land charge for the purposes of the Land Charges Act 1925.

13.—(1) Where the Council have either before or after the Enforcement of restrictive covenants relating to land acquired for open spaces etc. passing of this Act contributed or agreed to contribute towards or in connection with the acquisition or utilisation by the council of any other county or of any county borough or district or by any other public body (in this section referred to as an “authority”) or by any person or any trustees of land for the purpose of a public or private open space recreation or pleasure ground public walk sports ground or playing fields or towards the layout or maintenance of such land and such authority person or trustees have either before or after the passing of this Act in consideration of such contribution or of an agreement to make such contribution entered into a covenant with the Council restrictive of the user of such land the Council shall have power (in addition to any other rights or remedies under the instrument containing such covenant) to enforce such covenant against such authority person or trustees and against the persons deriving title under them in the like manner and to the like extent as if the Council were possessed of adjacent land capable of being benefited by such covenant and as if such covenant had been expressed to be entered into for the benefit of such adjacent land.

(2) Where an authority have either before or after the passing of this Act contributed towards or in connection with the acquisition or utilisation by the Council of land for the purpose of a public or private open space recreation or pleasure ground public walk sports ground or playing fields and the Council have either before or after the passing of this Act in consideration of such contribution or of an agreement to make such contribution entered into a covenant with such authority restrictive of the user of such land such authority shall have power (in addition to any other rights or remedies under the instrument containing

PART II
—cont.

such covenant) to enforce such covenant against the Council and the persons deriving title under them in the like manner and to the like extent as if such authority were possessed of adjacent land capable of being benefited by such covenant and as if such covenant had been expressed to be entered into for the benefit of such adjacent land.

(3) (a) For the purposes of section 15 of the Land Charges Act 1925 any covenant referred to in this section shall be deemed to be a restriction on the user or mode of user of land or buildings enforceable by a local authority under a covenant or agreement made with them.

(b) This section shall not apply to a covenant contained in any instrument made before the twenty-seventh day of November nineteen hundred and fifty-six unless the restrictions enforceable under such covenant were registered as local land charges within twelve months after that date.

(4) Any covenant to which this section applies shall continue to be enforceable notwithstanding that the land intended to be affected thereby may have passed to an authority acquiring the same by agreement under the Lands Clauses Acts or any Act incorporating those Acts.

(5) Nothing in this section shall deprive the Council or any authority person or trustees of any right to enforce a covenant to which this section applies which they or he would have had if this section had not been enacted.

Development
of land.

14.—(1) The Council may (with the consent of the Minister) lay out and develop any land for the time being belonging to them and not required for the purpose for which it was acquired and may on any such land erect and maintain houses shops offices industrial buildings garages warehouses and other buildings and construct sewer drain pave channel and kerb streets:

Provided that nothing in this section shall apply to land acquired by the Council under section 38 or section 40 of the Act of 1947 or to land appropriated by them for the purposes for which land can be acquired under those sections.

(2) The Council may use or dispose of the building or other materials of any houses or structures on any land acquired or appropriated by them which they deem it necessary or desirable to pull down.

(3) In this section the expression “industrial building” includes a building used or designed or suitable for use for the carrying on of any process for or incidental to any of the following purposes namely:—

- (a) the making of any article or of part of any article; or
- (b) the altering repairing ornamenting finishing cleaning washing packing or canning or adapting for sale or breaking up or demolition of any article; or

(c) without prejudice to the foregoing paragraphs the getting dressing or preparation for sale of minerals or the extraction or preparation for sale of oil or brine;

15.—(1) Subject to the provisions of this Act a local authority may exercise the powers contained in the foregoing provisions of this Part of this Act and those provisions shall accordingly have effect with any necessary modifications including the substitution of—

- (a) "a local authority" for "the Council";
(b) "district" for "county"; and
(c) "general rate fund" for "county fund".

16.—(1) A local authority may advance money to the purchaser or lessee of any land acquired from or leased by the local authority for the purpose of enabling or assisting him to build on such land or to extend or improve any existing building thereon: Loans for erection etc. of buildings.

(2) Before any advance is made under this section its repayment shall be secured to the satisfaction of the local authority by a mortgage of the land and building in respect of which the advance is to be made or of the lessee's interest therein and the instrument securing the advance shall—

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PART II
—cont.

- (e) authorise the borrower at any of the usual quarter days after one month's notice and on paying all sums due on account of interest to repay the whole of the outstanding principal of the advance or any part thereof being one hundred pounds (or such less sum as may be provided in the said instrument or as the local authority may be prepared to accept) or a multiple of one hundred pounds (or of such less sum as aforesaid);
- (f) where the repayment is to be made by an annuity of principal and interest combined provide for determining the amount by which the annuity is to be reduced when a part of the advance is paid off otherwise than by way of an instalment of the annuity;
- (g) require the borrower either—
 - (i) to keep the building in respect of which the advance is made insured against fire to the satisfaction of the local authority and to produce to the local authority when required the receipts for the premiums paid in respect of the insurance; or
 - (ii) (if the local authority elect themselves to insure the said building against fire) to repay to the local authority the amounts of any premiums paid by them from time to time in that behalf;
- (h) require the borrower to keep the said building in good repair.

(3) Any person acting on behalf of the local authority and authorised in writing by their clerk shall have power at all reasonable times to enter any building in respect of which an advance has been made under this section for the purpose of ascertaining whether the conditions of this section and of the instrument aforesaid are being complied with.

(4) In this section the expression "lessee" includes a person to whom a local authority have agreed to grant a lease and the expression "lease" shall be construed accordingly.

PART III

HIGHWAYS

Interpretation
of Part III.

17.—(1) In this Part of this Act unless the context otherwise requires the following expressions have the meanings hereby respectively assigned to them:—

"classified road" has the same meaning as in the Local Government Act 1929;

"private street" means a street within the meaning of the Private Street Works Act 1892 or a street to which

PART III
—cont.

B

PART III
—cont.

Prohibition of
building until
street formed
and sewered.

19.—(1) Where a plan and sections of a new street deposited with a local authority in pursuance of street byelaws are approved by them they may by notice prohibit the erection of any building on land abutting on the street until the carriageway of the street has been constructed and the street has been sewered in accordance with the said byelaws:

Provided that where the plan shows that the street will exceed one hundred yards in length the local authority shall divide the street for the purpose of the notice into lengths not exceeding one hundred yards and each such length shall for that purpose be treated as a separate street.

(2) Any such notice shall be given to the person by whom or on whose behalf the plan and sections were deposited and the prohibition imposed thereby shall be binding on successive owners of the land to which it relates.

(3) If any person contravenes the provisions of any such notice he shall be liable to a penalty not exceeding twenty pounds and the local authority may construct the carriageway and works of sewerage which should have been constructed and recover the expenses of so doing from that person.

(4) This section shall have effect subject to the provisions of the Land Charges Act 1925 with respect to the avoidance of any such notice for want of registration as a local land charge.

(5) The execution of any works under the provisions of this section shall not relieve any person from any liability under the provisions of any enactment relating to private street works for the time being in force in the district.

Termination
of new streets.

20.—(1) Where a plan and sections of a new street deposited with a local authority in pursuance of street byelaws are approved by them they may for the purpose of securing adequate means of communication between the new street and any other street (whether existing or intended) by notice prohibit the erection or retention of any structure at either end of the new street on land belonging at the time of the deposit to the owner of the land upon which the new street is proposed to be constructed or laid out:

Provided that no such notice shall affect any structure existing at the time of the deposit until both the new street and that other street have become highways repairable by the inhabitants at large.

(2) Any such notice shall be given to the person by whom or on whose behalf the plan and sections were deposited and the prohibition imposed thereby shall be binding on successive owners of the land to which it relates.

B. Improvements

(2) At least twenty-one days before commencing any work under this section which will materially reduce the width of the carriageway or any footway of a classified road the highway authority shall send notice of the proposed work to the Minister of Transport and Civil Aviation.

Provided that such consent shall not be unreasonably withheld and any question whether or not it is unreasonably withheld shall be determined by the Minister of Transport and Civil Aviation.

22.—(1) Subject to the provisions of this section the Council may enter into and carry into effect agreements with persons having a legal interest in land adjoining any county road in the county for the adjustment of the boundary of the road.

(2) For the purposes of this section the Council—

- (a) may exchange land including land forming the site of the road for other land and pay or receive money for equality of exchange; and
- (b) shall be deemed to be the owners of the land forming the site of the road and shall be entitled to convey any such land in accordance with the agreement.

(3) As from the date of any such exchange as aforesaid all public rights of way over the part of any such road so exchanged shall be extinguished.

(4) No such agreement shall be entered into until the expiration of one month from the date on which notice giving particulars of the proposed agreement has been published in some local newspaper circulating in the district in which such land is situate.

PART III
—cont.

(5) During the said period of one month any four ratepayers may appeal to a magistrates' court against the proposal to enter into the agreement.

(6) Nothing in this section shall be taken to dispense with the consent of any government department to any appropriation exchange or other disposition of any land of the Council in any case in which the consent of that department would have been required if this Act had not been passed.

(7) In this section the expression "ratepayer" means a person who is liable to any rate in respect of property in the district in which the land is situate entered in any valuation list and includes an occupier of such property who pays rent inclusive of rates.

(8) The powers of this section shall not be exercisable by the Council in respect of any street being a claimed road but in respect of any such street or any street being an unclassified road and not being a county road the said powers may be exercised by the local authority in whom such road is vested and this section shall be read and have effect accordingly as if references to such local authority were substituted therein for the references to the Council.

(9) The Council may if they think fit contribute to the expenses incurred by any such local authority in exercising the said powers.

C. Protection of highways

Erection of
structures at
street corners.

23.—(1) No person shall place or erect in the county any structure at or within a distance of ten yards from the corner of any street unless he has given to the highway authority notice of his intention so to do accompanied by plans and particulars of the structure and the highway authority have approved the placing or erection thereof under this section:

Provided that this subsection shall not apply to any structure being development which by virtue of the Act of 1947 and any development order for the time being in force thereunder may be undertaken only with permission granted on an application or an advertisement which may be displayed only with consent granted on an application under regulations for the time being in force under section 31 of that Act.

(2) Within five weeks from the receipt of such a notice from any person the highway authority may give him notice that they disapprove the placing or erection of the structure or that they approve it only subject to such conditions or to such modifications of the plans and particulars submitted to them as may be specified in the notice:

Provided that a notice shall not be given under this subsection except on the ground that the structure would by obstructing the view of foot-passengers or drivers of vehicles constitute a danger

to the traffic on the street upon adjoining or near to which it is proposed to be placed or erected or (as the case may be) would constitute such a danger unless placed or erected subject to the conditions or modifications specified in the notice.

(3) The highway authority may at any time within the said five weeks give notice that they approve the placing or erection of the structure in accordance with the plans and particulars submitted to them and if within the said five weeks the highway authority have not given notice under the last foregoing subsection they shall be deemed for the purposes of this section to have approved the placing or erection of the structure in accordance with those plans and particulars.

(4) Where the highway authority have approved the placing or erection of the structure it shall not be placed or erected—

(a) otherwise than in accordance with the plans and particulars submitted as aforesaid; or

(b) if notice has been given under subsection (2) of this section of any conditions or modifications otherwise than in accordance with those conditions and with the said plans and particulars as modified by the notice.

(5) Any person giving notice under subsection (1) of this section who is aggrieved by any notice given under subsection (2) thereof may within twenty-one days from the service of the last-mentioned notice appeal to the Minister of Transport and Civil Aviation who may make such order as he thinks fit and whose decision shall be final.

(6) If any person places or erects any structure in contravention of the foregoing provisions of this section he shall be liable to a penalty not exceeding five pounds.

(7) The foregoing provisions of this section shall not apply to a temporary structure required to be placed or erected at or within a distance of ten yards from the corner of a street for the purpose of the construction demolition alteration repair or maintenance of any building or works:

Provided that if any such temporary structure is not removed when the construction demolition alteration repair or maintenance of the building or works is completed the person who placed or erected it shall be liable to a penalty not exceeding five pounds.

(8) Where any person is convicted of an offence under either of the last two foregoing subsections the court by which he is convicted may order him within such time as may be fixed by the order to remove the structure in respect of which he was convicted and if he fails to comply with the order—

(a) he shall be liable to a penalty not exceeding twenty shillings for each day on which the failure continues; and

PART III
—cont.

(b) the highway authority after giving him notice of their intention so to do may remove the structure and recover from him the expenses incurred by them in so doing:

Provided that he shall not be liable to a penalty for any day after that on which the highway authority have given him notice of their intention to remove the structure.

(9) The provisions of this section shall not apply to any part of a street with respect to which restrictions have been imposed under section 4 of the Roads Improvement Act 1925.

(10) For the purposes of this section the corner of any street shall be deemed to be the point at which the frontage or boundary line of that street (if necessary continued in a straight line) intersects the frontage or boundary line of any other street (if necessary similarly continued).

Prevention of
obstruction to
view at
corners.

24. The provisions of section 4 of the Roads Improvement Act 1925 in their application to the Council shall have effect as if—

(1) in paragraph (a) of subsection (1) of that section there were inserted after the words “fence or hedge” the words “or other erection whether similar to the foregoing or not (not being or forming part of the structure of a permanent edifice or an advertisement to which regulations made under section 31 of the Act of 1947 for the time being apply)”; and

(2) in paragraph (b) of subsection (9) of that section there were inserted the words “or other erection” after the word “wall” wherever that word occurs.

Means of
access to
buildings.

25.—(1) Where the plans of any new building in a district intended or adapted for use as a house have been deposited with the local authority of that district in pursuance of building byelaws they may by notice prohibit either the erection of the building or the sale letting or occupation thereof (as may be specified in the notice) until sufficient means of communication are provided between the building and a street which either is a highway repairable by the inhabitants at large or has been laid out and constructed in accordance with street byelaws.

(2) Any such notice shall be given to the person by whom or on whose behalf the plans were deposited—

(a) before or together with the notice required to be given under subsection (2) of section 64 of the Act of 1936; or

(b) where the plans have been passed but the erection of the building has not begun before the passing of this Act at any time before the erection thereof has begun;

and the prohibition imposed by any such notice shall be binding on successive owners of the building.

(3) If it appears to the local authority to be necessary any such notice may require that the provision of the means of

ommunication shall include the carrying out of constructional work not exceeding that required for a new street by street byelaws.

PART III
—cont.

(4) A copy of any notice given under subsection (1) of this section shall be sent by the local authority to the statutory undertakers concerned and the statutory undertakers concerned may take such measures as may be reasonably necessary in consequence of the provision of the means of communication referred to in such notice (whether consisting of a change in the position of apparatus or other works or measures) for the protection of apparatus from damage or for preventing any undue interruption or restriction of the supply or service for which the apparatus is used and may recover the cost reasonably incurred by them in so doing from the person by whom or on whose behalf the plans were deposited and if the amount does not exceed twenty pounds it may be recovered summarily as a civil debt.

(5) If any person contravenes any notice under this section he shall be liable to a penalty not exceeding twenty pounds and the local authority may themselves provide the means of communication to which the notice refers and recover the expenses of so doing from that person.

(6) This section shall have effect subject to the provisions of the Land Charges Act 1925 with respect to the avoidance of any such notice for want of registration as a local land charge.

D. Private streets

26.—(1) A local authority may in any street in their district not being a highway repairable by the inhabitants at large execute such repairs as are in their opinion urgently required to prevent or remove danger to persons or vehicles in the street and may themselves pay the cost of the repairs out of the general rate fund: Urgent repairs of private streets.

Provided that the cost of the repairs executed in any street in any period of three consecutive years under this section shall not exceed fifty pounds for each one hundred yards of the length of the street.

(2) The exercise by a local authority of their powers under this section shall not prejudice their powers or the powers of the private streets authority under any statutory provision for the time being in force in the district relating to private street works or private street improvement expenses or under section 19 of the Public Health Acts Amendment Act 1907.

27. If—

- (a) any owner of land fronting adjoining or abutting on a private street in the county transfers the part or any portion of the part of that land which fronts adjoins or abuts on that street; and Evasion by owners of private street works expenses.

PART III
—cont.

- (b) any expenses of private street works in or in relation to that street are apportioned on that part or portion of that land; and
- (c) the private streets authority are unable to recover those expenses in whole or in part from the person to whom that part or portion of the land was transferred or by the sale thereof; and
- (d) a magistrates' court is satisfied that the transfer was intended for the purpose of evading the payment of any expenses of private street works;

then the expenses so apportioned or so much thereof as has not been recovered by the private streets authority may to such extent as the court may determine be recovered from the owner in the same manner as expenses of private street works may be recovered as though he had not made the transfer.

Carriage-
crossings at
ends of
private streets.

28.—(1) Where the termination of a new street not being a highway repairable by the inhabitants at large abuts on any highway so repairable and the use of such street involves passage across or interference with any part of such highway the highway authority may by notice require that a carriage-crossing shall be constructed across such part of the highway of such materials and in such manner as they may prescribe at the expense of the person by whom such street has been or is being laid out or constructed.

(2) Any person aggrieved by a requirement of the highway authority under the preceding subsection may appeal to a magistrates' court.

(3) If the highway authority make any requirement under subsection (1) of this section they shall also require that such works as may be necessary to secure compliance with that requirement shall be executed by the highway authority and not by any other person and the highway authority may recover the expenses of executing the works from the person by whom the street has been or is being laid out or constructed.

(4) Nothing in this section shall impose on the person by whom such street has been or is being laid out or constructed any obligation to maintain any crossing constructed in pursuance of a requirement under this section.

(5) Nothing in this section shall extend or apply to any such new street as aforesaid in any case where a certificate of the surveyor of the highway authority made before the passing of this Act certified that such street had before the date of the passing of this Act been completed in accordance with plans and specifications approved and required by the highway authority as a condition of declaring the street to be a highway repairable by the inhabitants at large but had not at that date been taken over by the highway authority.

29.—(1) Where in any district the Private Street Works Act 1892 is applicable and it appears to the private streets authority that a new street has been formed by reason of additions made to an existing footpath bridle path or other right of way repairable by the inhabitants at large (not being or comprising a carriageway) otherwise than by the giving up for the purpose by such private streets authority of lands owned by them the private streets authority may notwithstanding anything in the said Act of 1892 carry out private street works under the provisions of that Act in respect of such street or any part of such street and apportion the expenses thereof on the premises fronting adjoining or abutting on such street or such part thereof as if no part of the said street was so repairable.

PART III
—cont.
Application of
Act of 1892 to
parts of
public streets.

(2) Notwithstanding anything in the said Act of 1892 the private streets authority may in any district where that Act is applicable carry out private street works under the provisions of that Act throughout the width of a street notwithstanding that part of the width consists of a highway repairable by the inhabitants at large but save in a case falling within the provisions of subsection (1) of this section the private streets authority shall be entitled to apportion against the premises liable to be charged therewith only such part of the expenses as relates to the portion of the street which is not so repairable.

(3) For the purposes of any apportionment under subsection (2) of this section premises fronting adjoining or abutting on a street shall be deemed to front adjoin or abut on the portion of the street which is not repairable by the inhabitants at large.

(4) Where in consequence of any order or orders made under sections 30 31 or 32 of the Public Health Act 1925 any lands are added to an existing highway repairable by the inhabitants at large such lands shall for the purposes of section 150 of the Public Health Act 1875 or of the said Act of 1892 in any district where that Act is applicable be deemed to be a street not repairable by the inhabitants at large and the private streets authority may apportion the expenses of any private street works carried out in respect of such street or any part of such street on the premises of which such lands formed part immediately prior to their addition to the highway as aforesaid.

30. The power of a private streets authority under section 15 of the Private Street Works Act 1892 to contribute the whole or a portion of the expenses incurred by them in executing private street works with respect to any street or part of a street shall be extended so as to cover also the contribution of the whole or any portion of the amount which would otherwise be apportioned and charged under that Act in respect of the said expenses against any premises of which only a flank fronts adjoins or abuts on such street or part of a street and the amount which would otherwise so be apportioned and charged against any such premises shall be

Extension of
power to
contribute to
expenses of
private street
works.

PART III
—cont.

Recovery of
private street
works charges
where owner
unknown.

reduced by the amount of the contribution made by the private streets authority under this section in respect of such premises.

31.—(1) Where any private street works have been completed but the Council are unable to recover the amount due from the owner of any premises or otherwise under the Private Street Works Act 1892 by reason of the fact that such owner is unknown and cannot after diligent inquiry made when the said amount became due and at reasonable intervals thereafter be found the Council may at any time after the expiration of twelve years from the date when the said amount became due apply to the county court and that court may on the receipt of such application and on being satisfied that the provisions of this subsection have been complied with make an order vesting the said premises in the Council absolutely and thereupon the Council may appropriate the said premises subject to and in accordance with the provisions of section 163 of the Act of 1933 as if the said premises were land which was not required for the purpose for which it was acquired.

(2) Where the county court make an order under subsection (1) of this section the court shall nominate a surveyor for determining the value of the said premises and such surveyor shall determine the same accordingly and shall annex to his valuation a declaration in writing subscribed by him of the correctness thereof and the Council shall thereupon deposit a sum equal to the amount of such valuation after deduction of the amount of the final apportionment in respect of the said premises with interest thereon for a period of six years at the rate of five per centum per annum or at such other rate as may have been fixed by order of the Minister under section 77 of the Public Health Act 1925 together with all costs and expenses reasonably incurred by the Council.

(3) Any sum to be deposited under subsection (2) of this section shall be deposited in accordance with section 76 of the Lands Clauses Consolidation Act 1845 as if it was a sum awarded to be paid to an owner who cannot be found and as if the Council were the promoters of an undertaking and such sum shall be applied in accordance with section 78 of the said Act.

(4) The powers conferred by subsection (1) of this section shall be exercisable by the Council in addition to any existing rights powers and remedies for the recovery of expenses and shall be exercisable by the Council in respect of all private street works whether completed before or after the passing of this Act.

(5) Subject to the provisions of this Act the council of an urban district may exercise the powers contained in this section and this section shall accordingly have effect with any necessary modifications including the substitution of—

“ council of an urban district ” for “ Council ”;

“ Private Street Works Act 1892 or the Public Health Act 1875 whichever shall be the appropriate enactment ” for
“ Private Street Works Act 1892 ”.

PART III
—cont.

32.—(1) The provisions of street byelaws with respect to the width of new streets shall apply to any private street in respect of which a resolution to carry out private street works has been passed in accordance with the Public Health Act 1875 or the Private Street Works Act 1892 notwithstanding that such private street was constructed or laid out before such street byelaws came into force as if such private street were a new street.

Application of
street
byelaws to
certain
private streets.

(2) Any person who suffers loss or incurs any expense in consequence of the application of street byelaws to a private street under this section shall be entitled to be paid by the private streets authority compensation to be determined in the case of dispute (a) as to the amount of such loss in accordance with the Acquisition of Land (Assessment of Compensation) Act 1919 or (b) as to the amount of such expense by arbitration.

(3) Nothing in this section shall apply to a private street owned by the commission and forming the approach to any station wharf or depot of the commission.

E. Footpaths

33.—(1) Where the owner or occupier of or any person residing in any premises in the county which abut on or have access to any street repairable by the inhabitants at large habitually uses any grass verge or kerbed or paved footway in a street as a crossing for any horse or horse-drawn or mechanically propelled vehicle (other than a motor-bicycle) in passing to and from those premises the highway authority may give notice to the owner (if he habitually so uses the grass verge or footway) or (in any other case) the occupier either—

Crossings over
footways.

- (a) that they propose to construct across the grass verge or footway a carriage-crossing of such materials and in such manner as they may specify in the notice; or
- (b) in the case of a footway that they propose to strengthen or adapt it in such manner as they may so specify; or
- (c) imposing such reasonable conditions on the use of the grass verge or footway as a crossing as aforesaid as they may so specify:

Provided that this subsection shall not apply to any premises used exclusively for agricultural purposes within the meaning of the Act of 1947.

(2) Any person aggrieved by a notice under the foregoing subsection may appeal to a magistrates' court.

(3) The highway authority may execute such works as may have been specified in a notice served under paragraph (a) or paragraph (b) of subsection (1) of this section and recover the expenses of so doing from the owner or occupier.

PART III
—cont.

(4) If the highway authority impose any condition under paragraph (c) of subsection (1) of this section any person who knowingly uses the grass verge or footway as a crossing as aforesaid or permits it to be so used in contravention of that condition shall be liable to a penalty not exceeding five pounds.

(5) Nothing in this section shall impose on the owner or occupier any obligation to maintain any crossing constructed or footway strengthened or adapted in pursuance of a requirement made under this section.

(6) Section 18 of the Public Health Acts Amendment Act 1907 shall if in force in a district cease to be in force therein and if not in force in a district shall not be declared to be in force therein and the following provisions of this subsection shall have effect as respects streets in such district which are repairable by the inhabitants at large:—

- (a) Any person may request the highway authority in writing to carry out such works as shall be specified in the request for the purpose of forming a carriage-crossing across a grass verge or footway in any such street or of strengthening or adapting a part of any such footway as a carriage-crossing;
- (b) The highway authority may approve the request either with or without modifications or propose alternative work or reject the application;
- (c) The highway authority shall give the applicant notice of their decision under the last foregoing paragraph and if they approve the work requested or propose alternative work shall furnish him with an estimate of the cost of the work as approved or proposed by them;
- (d) The applicant may deposit with the highway authority the amount of the said estimate and require them to execute the work as approved or proposed by them;
- (e) As soon as practicable after such a deposit has been made the highway authority shall execute the work as approved or proposed by them and any difference between the sum deposited and the actual cost of the work shall be paid to or by the highway authority by or to the applicant as the case may require.

(7) For the avoidance of doubt be it enacted that the works to be executed under this section are works to be executed for road purposes within the meaning of Part II of the Act of 1950 and accordingly the code in that Part shall have effect as if those works were specifically mentioned in paragraph (a) of subsection (1) of section 21 of that Act.

(8) The expenses recoverable under subsection (3) of this section and the cost of the work for the purposes of subsection (6) shall include the cost of any works which are required by the

Act of 1950 to be executed in consequence of the construction of the crossing or the strengthening or adaptation of the footway.

PART III
—cont.

34.—(1) Where a street in the county which is not repairable Maintenance by the inhabitants at large is laid out as a carriageway and of footways footway the owner of every house fronting adjoining or abutting etc. on such street shall maintain so much of the footway as abuts on or adjoins the frontage of such house and the approach to such house from the street (exclusive of so much of such footway or approach as passes through any land within the curtilage of such house) in accordance with such reasonable requirements as may be specified in a notice given by the private streets authority.

(2) Any person aggrieved by a requirement of the private streets authority under this section may appeal to a magistrates' court.

(3) Subject to such right of appeal as aforesaid if any person fails to comply with a notice given by the private streets authority under this section within twenty-eight days (or such longer period as may be specified in the notice or allowed by the private streets authority) from the receipt of such notice he shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(4) Nothing in this section shall be deemed to relieve a highway authority from their obligations under the National Parks and Access to the Countryside Act 1949 to repair public paths (as defined in Part IV of the said Act of 1949).

F. Miscellaneous

35.—(1) Subject to the provisions of this section a magistrates' court—

Stopping up
and diversion
of highways.

(a) if satisfied on the application of the highway authority that a highway within the county is unnecessary may by order authorise the stopping up thereof; and

(b) if so satisfied that such a highway can be diverted so as to make it nearer or more commodious to the public may by order authorise it to be so diverted.

(2) An application or order under this section—

(a) may provide for the stopping up or diversion of a highway for the purposes of all traffic or subject to the reservation of a bridle-way or footway;

(b) may be made with respect to any part of a highway;

(c) may be made with respect to two or more highways or parts of highways which are connected with each other;

and in relation to any application or order in respect of a part of a highway or two or more highways or parts of highways any reference in the subsequent provisions of this section to a

PART III
—cont.

highway shall be construed as a reference to that part or those highways or parts of highways (as the case may be).

(3) No application or order shall be made under this section with respect to a trunk road.

(4) No order shall be made under this section unless the court is satisfied that—

(a) notice of the intention to apply for the order specifying the time and place at which the application is to be made and the terms of the order applied for (embodying a plan showing the effect of the order) has at least twenty-eight days before the date on which the application is made been served on the local planning authority on the statutory undertakers in whose area or limits of supply the highway is situate and on the local authority and parish council concerned and on the owners or reputed owners and the occupiers of all land abutting on the highway and also when the application relates to a classified road on the Minister of Transport and Civil Aviation; and

(b) a similar notice (except that there may be substituted for the plan a statement of the place where the plan can be inspected at all reasonable hours without payment)—

(i) has been inserted once at least in each of four successive weeks in a local newspaper circulating in the area in which the highway to which the application relates is situate and once in the London Gazette; and

(ii) has during at least twenty-eight days been exhibited in such manner and in such positions on or near the highway as may be reasonably sufficient for notifying persons using the highway of the application.

(5) No order under this section authorising the diversion of a highway—

(a) shall be made unless the written consent of the local planning authority and of every person having a legal interest in the land over which the highway is to be diverted is produced to and deposited with the court;

(b) shall authorise the stopping up of any part of the highway until the new part to be substituted for the part stopped up has been completed to the satisfaction of two justices of the peace and a certificate to that effect signed by them has been transmitted by their clerk to the clerk of the peace of the county.

(6) On the hearing of the application the highway authority the local planning authority and the local authority and parish council concerned and any person who is interested in land abutting on or served by the highway or uses the highway or is otherwise aggrieved shall have a right to be heard.

(7) An appeal against a decision of a magistrates' court under this section may be brought to quarter sessions by any person (including any authority or council) who was entitled under the last foregoing subsection to be and was or claimed to be heard on the application and for the purposes of the provisions of the Summary Jurisdiction Act 1879 and of the Magistrates' Courts Act 1952 with respect to appeals to quarter sessions where more than two persons were heard or claimed to be heard in opposition to the application it shall be sufficient if a notice of appeal against a refusal to make an order upon that application is served upon any two of those persons in addition to the clerk of the court but without prejudice to the right of any of those persons to appear as respondents to the appeal.

(8) Where by reason of the diversion of a highway under this section any person is relieved from liability to repair the highway he shall be liable to pay to the highway authority such sum as may be agreed between him and the highway authority or in default of agreement as may be determined by arbitration to represent the value to him of the relief and any such sum shall be payable either—

- (a) as a lump sum; or
 - (b) by annual payments of such amount and continuing for such number of years as may be agreed or determined as aforesaid.
- (9) Every order made under this section—
- (a) shall have annexed thereto a plan signed by the chairman of the court; and
 - (b) shall be transmitted by the clerk of the court to the clerk of the peace of the county together with any written consents produced to the court under subsection (5) of this section;

and the said clerk of the peace shall enrol any documents so transmitted to him and any certificates transmitted to him under subsection (5) of this section among the records of quarter sessions.

36.—(1) If any tree wall or structure or any part thereof shall fall on or across any street repairable by them the highway authority may remove the same and recover the reasonable cost of so doing from the owner thereof or if such owner was not in beneficial occupation of the land upon which such tree wall or structure or any part thereof was situate from the occupier thereof.

Removal of
trees etc. from
streets.

(2) The provisions of section 276 of the Act of 1936 (relating to the sale of certain materials) as applied by this Act shall for the purposes of this section have effect as if—

- (a) instead of the local authority the section referred to the highway authority as defined in section 4 (Interpretation) of this Act; and

PART III
—cont.

(b) the expression "materials" included a tree or part thereof.

Milk stands
in roads.

37.—(1) Any person with the consent of the highway authority and subject to such reasonable conditions as they may impose may in proper and convenient situations in any road or roadside waste thereof provide stands for milk churns and containers:

Provided that the consent of the highway authority shall not be given to the provision of any stand in any road or roadside waste thereof in such a situation as to obstruct an existing access to any land or premises abutting on such road.

(2) Any person who without the consent of the highway authority provides stands for milk churns and containers in any road or roadside waste thereof shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds and the highway authority may themselves remove the said stands in respect of which the offence has been committed and recover the expense of so doing from the person guilty of the offence.

Attachment
of street
lamps
brackets etc.

38.—(1) Subject to the provisions of this section a local authority may affix to any building in their district such lamps brackets pipes electric lines and apparatus (hereafter in this section referred to as "attachments") as may be required for the purposes of street lighting.

(2) A local authority shall not affix attachments to a building under this section without the consent of the owner of the building:

Provided that where in the opinion of the local authority any consent required under this subsection is unreasonably withheld they may apply to the appropriate authority who may either allow the attachments subject to such conditions (if any) as to rent or otherwise as the appropriate authority thinks fit or disallow the attachments.

(3) Where any attachments have been affixed to a building under this section and the person who gave the consent or who was the owner of the building when the attachments were allowed by the appropriate authority ceases to be the owner thereof the subsequent owner may give to the local authority notice requiring them to remove the attachments and subject to the provisions of this subsection the local authority shall comply with the requirement within three months after the service of the notice:

Provided that where in the opinion of the local authority any such requirement is unreasonable they may apply to the appropriate authority who may either annul the notice subject to such conditions (if any) as to rent or otherwise as the appropriate

PART III
—*cont.*

(5) If the owner of any building suffers damage by or in consequence of the affixing to the building of any attachments under the powers of this section he shall be entitled to be paid by the local authority compensation to be determined in case of dispute under and in accordance with the Acquisition of Land (Assessment of Compensation) Act 1919.

“ appropriate authority ” means a magistrates’ court except that in relation to a building mentioned in the first column of the following table it means the Minister specified in relation thereto in the second column of that table:—

1	2
Building forming part of an aerodrome licensed pursuant to an order made under the Civil Aviation Act 1949 or any enactment repealed by that Act	The Minister of Transport and Civil Aviation.
Building which— (i) is subject to a building preservation order made under section 29 of the Act of 1947; or (ii) is included in a list of buildings of special architectural or historic interest compiled or approved under section 30 of the Act of 1947; or (iii) is alleged by the owner thereof to be a building of special architectural or historic interest	The Minister.
Building owned by a highway authority or railway canal or inland navigation undertakers	The Minister of Transport and Civil Aviation.
Building owned by electricity or gas undertakers	The Minister of Power.
Building owned by statutory water undertakers	The Minister.

PART III
—cont.

“ building ” includes a structure and a bridge or aqueduct over a street;

“ owner ” means—

(a) in relation to a building occupied under a tenancy for a term of years whereof five years or more remain unexpired and not forming part of such an aerodrome as aforesaid the occupier of the building;

(b) in relation to a building forming part of such an aerodrome as aforesaid the person having control of the aerodrome;

(c) in relation to any other building the person who is receiving the rack-rent or who would receive the rack-rent if the building were let at a rack-rent;

and the expression “ owned ” shall be construed accordingly.

Summary
recovery of
damages for
negligence.

39. Any compensation recoverable by the Council or any local authority or highway authority or a joint board or a joint committee of local authorities or a parish council for damage caused by negligence to any lamp or lamp-post belonging to them or any apparatus or equipment provided by them in any street or public place shall if the amount thereof does not exceed twenty pounds be recoverable summarily as a civil debt.

Exercise by
Council of
powers with
respect to
county roads.

40.—(1) The Council shall with respect to county roads (not being claimed roads) and roads constructed by the Council or by some person under agreement with them which when completed are intended to become county roads have the functions of an urban district council or a local authority under the enactments mentioned in this section and those enactments shall apply accordingly.

(2) The enactments referred to in this section are as follows:—

The Towns Improvement Clauses Act 1847 (as incorporated with the Public Health Act 1875)—

Section 68 (Houses projecting beyond line of street when taken down to be set back);

Section 69 (Future projections of houses etc. to be removed on notice);

Section 70 (Commissioners may cause existing projections to be removed and compensation to be made);

Section 71 (Doors in future to be made to open inwards);

Section 72 (Doors opening outwards may be altered by commissioners);

Section 73 (Coverings for cellar doors to be made by occupier);

Section 75 (Ruinous or dangerous buildings to be taken down or secured by owners etc.);

Section 77 (If owner cannot be found commissioners may take the house or ground making compensation provided by 8 & 9 Vict. c. 18);

Section 81 (Penalty for not lighting deposits of building materials or excavations);

Section 82 (Penalty for continuing deposits of building materials or excavations at unreasonable time);

Section 83 (Dangerous places to be repaired or inclosed);

The Public Health Acts Amendment Act 1890—

Section 35 (As to repair of cellars under streets);

The Public Health Acts Amendment Act 1907—

Section 30 (Dangerous places to be repaired or enclosed);

Section 31 (Fencing lands adjoining streets):

The Public Health Act 1925—

Section 24 (Projections against or in front of houses or buildings).

(3) The Council shall not in the exercise of the powers of this section perform or discharge any of the functions under the enactments mentioned in this section in any district in which such enactments are for the time being in force except at the request of and by agreement with the local authority of such district and during the continuance of such agreement such functions shall cease to be exercisable by such local authority in relation to the road to which the agreement applies:

Provided that nothing in this subsection shall prevent the Council from exercising any powers conferred on them by any other enactment.

(4) Any agreement made under the provisions of this section may relate to any one or more roads in a district.

PART III
—cont.

(5) The functions conferred on the Council under the enactments referred to in this section shall not be exercised with respect to any advertisement. For the purposes of this section the expression “advertisement” has the meaning assigned to it by section 119 of the Act of 1947.

Sale of food
and articles
on verges etc.

41.—(1) No person (other than a person selling offering or exposing for sale or depositing for sale any food goods provisions articles or things at any market or fair for which he has paid a toll stallage or rent) shall in the county—

- (a) sell or offer or expose for sale; or
- (b) deposit for sale;

on the verge of or on any lay-by in a trunk road or a road classified by the Minister of Transport and Civil Aviation under the Ministry of Transport Act 1919 or on any roadside waste adjacent thereto any food goods provisions articles or things in such a manner that any danger or obstruction is caused or is likely to be caused to persons or vehicles using such road or the footpath adjacent to such verge or roadside waste by—

- (i) such sale or offer or exposure for sale or deposit for sale; or
- (ii) a person buying or examining such food goods provisions articles or things; or
- (iii) a vehicle which had been used by such last-mentioned person.

(2) If any person contravenes the provisions of this section he shall be liable to a penalty not exceeding forty shillings.

(3) Nothing in this section shall apply to—

- (a) the sale of food goods provisions articles or things from a vehicle used as a travelling shop for the purpose of itinerant trading; or
- (b) any fixed or movable shelters or other accommodation for servants of the commission erected maintained or placed by the commission under the provisions of section 65 of the London Passenger Transport Act 1938.

PART IV

PUBLIC HEALTH

Interpretation
of Part IV.

42. In this Part of this Act the expression “river or stream” for the purposes of section 46 (For preventing obstruction to streams by culverts etc.) section 47 (Cleansing of rivers and streams) and section 48 (Entry for purposes of last two foregoing sections) of this Act means any watercourse within the meaning of that expression in the Land Drainage Act 1930 but shall not include—

- (a) the river Thames and the watercourses which are respectively to be treated as and deemed to be the main

river and parts thereof and are shown by distinctive colours on the map of the river Thames (above Teddington Lock) catchment area prepared in pursuance of section 5 of the Land Drainage Act 1930 and for the time being in force; or

- (b) any such river or stream as is for the time being a main river of the Great Ouse River Board.

A. Sewers

43.—(1) Where the local authority—

- (a) resolve to construct a sewer in a street or part of a street in their district being a street or part which is repairable by the inhabitants at large and has not been previously sewered; and

- (b) include in the resolution a declaration that the construction of the sewer will in their opinion increase the value of premises fronting adjoining or abutting on the street or that part thereof;

then the provisions of the Third Schedule to this Act shall have effect as respects the apportionment and recovery by the local authority of the expenses incurred in constructing the sewer:

Provided that all liabilities under the said schedule in respect of the sewer shall cease at the expiration of two years from the date when the resolution becomes operative if the construction of the sewer is not then complete.

(2) Notice of any such resolution shall be published by the local authority in a local newspaper circulating in their district and the resolution shall become operative for the purposes of this section and the said schedule on the date of such publication.

(3) Either—

- (a) a copy of any such newspaper containing any such notice; or

- (b) a photostatic or other reproduction certified by the clerk of the local authority to be a true reproduction of a page or part of a page of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of publication.

44. Where land in a district in which a length of sewer has been constructed after the coming into operation of this section at the expense of the local authority becomes a street (whether repairable by the inhabitants at large or not) then the provisions of the Third Schedule to this Act shall have effect as respects the apportionment and recovery by the local authority of the expenses incurred in constructing the length of sewer:

Recovery of expenses of sewerage prospective street.

PART IV
—cont.

Provided that where compensation due to the owner of any land in respect of damage sustained by reason of the construction therein of the length of sewer has been diminished by setting off any sum on account of the enhancement in value of the land by reason aforesaid this section shall not apply to so much of the length of sewer as has been constructed in that land.

Prevention of
evasion of
liabilities under
last two
foregoing
sections.

45.—(1) If on a complaint by a local authority to a magistrates' court it is proved to the satisfaction of the court—

(a) that by reason of any transfer of land any part of any premises in their district (hereafter in this section referred to as "the severed part")—

(i) has ceased to be included in premises fronting adjoining or abutting on a street or part of a street to which section 43 (Recovery of expenses of sewerage public highway) of this Act applies; or

(ii) has been excluded from premises which have subsequently become premises fronting adjoining or abutting on a street to which section 44 (Recovery of expenses of sewerage prospective street) of this Act applies or has ceased to be included in premises fronting adjoining or abutting on such a street; and

(b) that the transfer was intended for the purpose of evading liability under the Third Schedule to this Act imposed by the said section 43 or section 44 (as the case may be);

then the court may make such order under the following provisions of this section as it thinks just for the purpose of ensuring that the said liability is not evaded by reason of the transfer.

(2) Any such order may direct—

(a) that for the purposes of paragraph 2 of the said schedule the severed part shall be deemed to be premises fronting adjoining or abutting on the street or part of the street in question and shall be deemed to have had at the relevant date within the meaning of the said schedule such frontage on the street as may be specified in the order;

(b) that for the purposes of sub-paragraph (a) of paragraph 6 of the said schedule the site of a new building erected on the severed part and the land occupied therewith shall be deemed to have such frontage on the street or part of the street as may be specified in the order;

(c) that any such amendment shall be made of any entry in the register of local land charges as may be specified in the order including an amendment taking effect as from a past date.

(3) Any order made under paragraph (a) of subsection (2) of this section may also direct that any premises from which the severed part has been excluded or in which it has ceased to be included shall not be deemed to be premises fronting adjoining or abutting on the street or part of the street or shall be deemed to have such frontage as may be specified in the order.

PART IV
—*cont.*

(4) Orders made under any provision of subsection (2) of this section may be made on separate complaints made by the local authority at different times.

(5) For the purposes of this section the expression “transfer” includes any disposal of land whether by way of sale lease exchange gift or otherwise.

B. Rivers and streams

46.—(1) Where any obstruction is or may be caused to any river or stream by any inadequate or insufficient culvert channel or other work a local authority may within their district reconstruct improve repair or remove such culvert channel or work or may construct and maintain a proper and sufficient or enlarged culvert channel or other work.

For preventing obstruction to streams by culverts etc.

(2) A local authority and any other local authority or person may enter into and carry into effect agreements for and with respect to the carrying out of any works of construction reconstruction improvement repair maintenance or removal for the purposes of this section.

(3) Nothing in this section shall be deemed to—

- (a) restrict the exercise by the local authority of their powers in relation to culverts channels or other works; or
- (b) impose upon the local authority any liability to maintain a culvert channel or other work.

- (b) impose upon the local authority any liability to maintain a culvert channel or other work.

(4) Nothing in this section shall authorise the local authority to execute any works in through or under or so as to affect any lands or works belonging to the commission and used by them for the purposes of their railways canals or inland navigations without the consent of the commission but such consent shall not be unreasonably withheld and any question as to whether such consent is unreasonably withheld shall be determined by arbitration.

(5) Nothing in this section shall authorise the local authority to execute any work in or in connection with any watercourse for the time being vested in or under the control of any internal drainage board without the consent in writing of that board which consent may be given subject to such reasonable terms and conditions as the said board may think fit but such consent shall not be unreasonably withheld and any question whether such

PART IV
—cont.

Cleansing of
rivers and
streams.

consent is or is not unreasonably withheld or whether such terms and conditions are or are not reasonable shall be determined by the Minister of Agriculture Fisheries and Food.

47.—(1) If any river or stream or any part thereof within a district is or becomes in such a state that the proper flow of water along the same is obstructed or impeded the local authority may by notice require the owner or occupier of any lands abutting on any part of such river or stream which is in such a state as aforesaid or any person by whose act or default the proper flow of water in such river or stream is obstructed or impeded to cleanse or put in proper order such river or stream or part thereof so as to allow the proper flow of water in such river or stream:

Provided that the local authority shall not in pursuance of this section require any person to carry out any works in through or under any lands which are not owned or occupied by him without the consent of the owner and occupier thereof.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section:

Provided that for the purposes of such application subsection (3) of the said section 290 shall have effect as if—

- (i) in paragraph (e) thereof for the words “the occupier of the premises in question instead of on the owner or on the owner instead of on the occupier” there were substituted the words “some other person”; and
- (ii) for paragraph (f) thereof there were substituted the following paragraph:—

“(f) that some other person ought to contribute towards the expenses of executing any works required”.

(3) Nothing in this section shall authorise the local authority to execute or require the commission to execute any works in through or under or so as to affect any lands or works belonging to the commission and used by them for the purposes of their railways canals or inland navigations without the consent of the commission but such consent shall not be unreasonably withheld and any question as to whether such consent is unreasonably withheld shall be determined by arbitration.

(4) The powers of this section shall not be exercised in relation to any river or stream for the time being vested in or under the control of any internal drainage board without the consent in writing of that board which consent may be given subject to such reasonable terms and conditions as the said board may think fit but such consent shall not be unreasonably withheld

and any question whether such consent is or is not unreasonably withheld or whether any such terms and conditions are or are not reasonable shall be determined by the Minister of Agriculture Fisheries and Food.

PART IV
—cont.

48.—(1) Any authorised officer of a local authority shall on producing if so required some duly authenticated document showing his authority have a right to enter any premises at all reasonable hours for the purpose of—

Entry for
purposes of
last two
foregoing
sections.

- (a) inspecting any river or stream or any culvert channel or other work; or
- (b) ascertaining whether or not circumstances exist which would authorise or require the local authority to take any action or execute any work under the last two foregoing sections; or
- (c) taking any action or executing any work authorised or required by the last two foregoing sections to be taken or executed by the local authority:

Provided that admission to any premises shall not be demanded as of right unless twenty-four hours' notice of the intended entry has been given to the occupier.

(2) The provisions of this section shall not authorise any officer of the local authority to enter any lands or works belonging to the commission and used by them for the purposes of their railways canals or inland navigations without the consent of the commission but such consent shall not be unreasonably withheld and any question as to whether such consent is unreasonably withheld shall be determined by arbitration.

49.—(1) If it appears to the Council that a local authority have made default in discharging any of their functions under section 46 (For preventing obstruction to streams by culverts etc.) or section 47 (Cleansing of rivers and streams) of this Act the Council may complain to the Minister.

Complaint by
Council to
Minister of
default of
local
authority.

(2) If the Minister is satisfied that there has been such default he may make an order declaring the local authority to be in default and transferring to the Council such of the functions of the local authority as may be specified in the order.

(3) Before making any such order as is referred to in this section the Minister shall give notice to the local authority and if the local authority object to the proposal to make the order the Minister shall (unless the Council satisfy him that the transfer of the functions of the local authority is urgently necessary in the public interest) cause a local inquiry to be held into the matter of the complaint.

PART IV
—cont.

Power to
order
alteration of
domestic
chimneys.

C. *Miscellaneous*

50.—(1) If a magistrates' court is satisfied upon a complaint by a local authority that any smoke gas or vapour from any chimney flue or pipe of a building or structure forming part of or within the curtilage of a house in their district is prejudicial to the health of any of the inhabitants of the district or a nuisance the court may make an order requiring the owner of the chimney flue or pipe within such time as may be specified in the order—

- (a) to cause it to be raised to a height so specified; or
- (b) to cause such other means for remedying the cause of complaint to be adopted as the court thinks fit:

Provided that the court shall not make an order under this section unless it is satisfied that the work to be done in pursuance of the order will not involve an expenditure exceeding fifty pounds.

(2) If any person fails to comply with an order made under this section he shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

Noise
nuisance.

51.—(1) Any excessive or unreasonable or unnecessary noise which is prejudicial to health or a nuisance shall be a statutory nuisance for the purposes of Part III of the Act of 1936:

Provided that—

- (a) in any proceedings brought by virtue of this section under the said Part III in respect of a noise occasioned in the course of any trade or business it shall be a defence for the defendant to prove that he has used the best practicable means for preventing or mitigating the noise having regard to the cost and to other relevant circumstances;
- (b) a justice shall not entertain a complaint under section 99 of the said Act with respect to a noise unless the complaint is made by not less than three occupiers of premises within hearing of the noise.

(2) Nothing in this section shall apply to a noise occasioned by the exercise by railway or canal undertakers of statutory powers conferred in relation to their railway or canal undertaking.

(3) Nothing in this section shall affect the power of the Council or of the council of a borough in the county to make byelaws under section 249 of the Act of 1933.

Hairdressers
and barbers.

52.—(1) As from the appointed day in any district no person shall carry on the business of a hairdresser's or barber's shop on any premises therein unless he and those premises are registered by the local authority of the district in which the premises are situate.

(3) The local authority may make byelaws for the purpose of securing—

- (a) the cleanliness of premises registered under this section and of the instruments towels materials and equipment used therein; and
- (b) the cleanliness of persons employed in such premises in regard to both themselves and their clothing.

(4) (a) If any person carries on business in contravention of subsection (1) of this section he shall be liable to a penalty not exceeding twenty pounds and a daily penalty not exceeding five pounds.

(b) If any person contravenes any byelaw made under subsection (3) of this section he shall be liable to a penalty not exceeding five pounds and the court by which he is convicted may (in lieu of or in addition to imposing a penalty) order the suspension or the cancellation of his registration:

Provided that the court may if it thinks fit suspend the operation of the order until the time limited by subsection (1) of section 84 of the Magistrates' Courts Act 1952 for appealing to a court of quarter sessions has expired and if an appeal is lodged until the appeal is disposed of or withdrawn or fails for want of prosecution.

(5) Where the registration of any person is cancelled by order of a court under the last foregoing subsection—

- (a) he shall within seven days deliver up to the local authority his certificate of registration and if he fails to do so he shall be liable to a penalty not exceeding twenty shillings and a daily penalty not exceeding ten shillings; and
- (b) he shall not again be registered by the local authority under this section except in pursuance of a further order of a magistrates' court made on his application.

(6) A person registered under this section shall keep a copy of the said byelaws and of his certificate of registration displayed in the premises in respect of which he is registered and if he fails to do so he shall be liable to a penalty not exceeding twenty shillings and a daily penalty not exceeding ten shillings.

PART IV
—cont.

(7) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of this section shall be provisions which it is the duty of the local authority to enforce.

(8) For the purposes of this section the expression “the appointed day” means such day as may be fixed by resolution of the local authority subject to and in accordance with the following provisions of this section.

(9) The local authority shall cause to be published in a local newspaper circulating within the district notice—

(a) of the passing of any such resolution and of the date fixed thereby; and

(b) of the general effect of the provisions of this section; and the date so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(10) Either—

(a) a copy of any such newspaper containing any such notice; or

(b) a photostatic or other reproduction certified by the clerk of the local authority to be a true reproduction of a page or part of a page of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of the publication.

PART V

WEIGHTS AND MEASURES

Interpretation
of Part V.

53. In this Part of this Act unless the subject or context otherwise requires the following expressions have the meanings hereby respectively assigned to them:—

“the Act of 1889” means the Weights and Measures Act 1889;

“coke” includes any solid fuel derived from coal or of which coal or coke is a constituent;

“vehicle” includes any lorry cart handcart wagon truck or other means of conveying goods or commodities by land but does not include a railway truck or wagon.

A. *Sale of fuel*

Application
and amend-
ment of Act
of 1889.

54.—(1) Section 4 of the Act of 1889 (which provides that persons convicted of offences shall be liable to imprisonment in cases of fraud) shall extend and apply to convictions under any

PART V
—*cont.*

Section 59 (As to sale in sacks of coal etc. in quantities exceeding two hundredweight).

(c) Any other reference to coal in the said sections 20 21 22 24 25 26 28 and 29 and in the said Third Schedule and any byelaws made thereunder shall include a reference to coke and (except in section 28 and the byelaws made thereunder) to any quantity of wood fuel and peat fuel exceeding fourteen pounds.

Byelaws relating to fuel.

(b) requiring either generally or in specified classes of cases a weighing instrument of a form approved by the Council to be carried with any vehicle in which wood fuel or peat fuel is carried for sale or delivery to a purchaser.

56. If in the county any person wilfully makes any false statement as to the weight of any coal coke wood fuel or peat fuel which is being or has been sold delivered or offered or exposed or carried on a vehicle for sale in the county or as to the tare

PART V
—cont.

weight of a vehicle used for the delivery of coal coke wood fuel or peat fuel in the county or wilfully increases the weight of any such coal coke wood fuel or peat fuel by damping the same or wilfully does any other act by which the seller or the purchaser or prospective purchaser of coal coke wood fuel or peat fuel is or may be defrauded not being a false statement or an act (as the case may be) to which section 63 (Penalties on persons committing frauds) of this Act applies he shall be liable for every such offence on the first occasion to a penalty not exceeding five pounds and on any subsequent occasion to a penalty not exceeding ten pounds.

Requirements
as to vehicles
carrying coal
etc. for sale or
delivery
on sale.

57.—(1) Every vehicle carrying coal coke wood fuel or peat fuel for sale or for delivery on sale in the county shall have the seller's name and place of business clearly marked and visible on such vehicle in letters not less than one inch in height:

Provided that it shall be a sufficient compliance with the provisions of this section if in respect of vehicles belonging to or used by—

- (a) the National Coal Board the words “National Coal Board”; or
- (b) the North Thames Gas Board the words “North Thames Gas”; or
- (c) the Southern Gas Board the words “Southern Gas Service”; or
- (d) any area gas board the name of the area gas board concerned;

are or is clearly marked and visible as aforesaid on such vehicles.

(2) The seller of any coal coke wood fuel or peat fuel carried on a vehicle in contravention of this section shall be liable to a penalty not exceeding five pounds.

As to sale
of coal etc.
otherwise than
in sacks from
a vehicle.

58.—(1) Any person selling or exposing for sale or carrying for sale or delivery on sale in the county coal coke wood fuel or peat fuel from or on a vehicle otherwise than in sacks and not carrying on such vehicle a weighing instrument of a type approved by the Council and stamped by an inspector of weights and measures shall sell at one time only the whole load of such coal coke wood fuel or peat fuel on such vehicle and shall before leaving the place at which the coal coke wood fuel or peat fuel was loaded be furnished with a ticket or note stating the gross tare and net weight of such load and shall produce such ticket or note to any inspector of weights and measures or other officer appointed for the purpose by the Council on demand and shall deliver such ticket or note to the purchaser or his servant before any part of the coal coke wood fuel or peat fuel is unloaded.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds.

59.—(1) Where in the county—

PART V
—cont.

- (a) any quantity of coal coke wood fuel or peat fuel exceeding two hundredweight is carried by means of any one vehicle on any one journey for delivery in the county to more than one purchaser; or
- (b) any person sells or exposes or offers for sale or carries for sale or delivery on sale in the county coal coke wood fuel or peat fuel from or on any vehicle in quantities exceeding two hundredweight;

As to sale in sacks of coal etc. in quantities exceeding two hundredweight.

and such coal coke wood fuel or peat fuel is carried on such vehicle in sacks the net weight of coal coke wood fuel or peat fuel in any one sack shall be equal to one of the following weights:—

- two hundredweight;
- one hundredweight;
- one-half of a hundredweight;
- one-quarter of a hundredweight;

and each sack shall be legibly marked so as to show the net weight of coal coke wood fuel or peat fuel carried in such sack:

Provided that this section shall not apply when the complete load of a vehicle is delivered to one purchaser at one point of delivery and there is stated on the ticket or note referred to in section 21 of and the Third Schedule to the Act of 1889 the number of sacks to which the ticket or note relates.

(2) In addition to the matters which in accordance with section 21 of and the Third Schedule to the Act of 1889 are required to be stated on the ticket or note referred to in that section there shall in all cases in which subsection (1) of this section applies be stated on such ticket or note the number of sacks carried on the vehicle to which the ticket or note refers before it leaves the place where it is loaded and the net weight of coal coke wood fuel or peat fuel in each of such sacks and the said section 21 in its application to the county shall be read and have effect accordingly.

(3) If default is made in complying with any of the requirements of subsection (1) of this section the seller of the coal coke wood fuel or peat fuel and the person responsible for loading the coal coke wood fuel or peat fuel on such vehicle shall severally be liable to a penalty not exceeding five pounds and if the net weight of coal coke wood fuel or peat fuel in any such sack is less than the weight shown thereon or stated in the ticket or note referred to in section 21 of the Act of 1889 the said persons and the person in charge of such vehicle shall severally be liable to the like penalty.

(4) A person against whom proceedings are brought in respect of an offence under this section (hereafter in this section referred to as “the original defendant”) shall upon information duly laid by him and on giving to the prosecutor not less than three

PART V
—cont.

clear days' notice of his intention be entitled to have any other person to whose act or default he alleges that the offence was due brought before the court in the proceedings and if after the commission of the offence has been proved the original defendant proves that the offence was due to the act or default of that other person that other person may be convicted of the offence and if the original defendant further proves that he has used all due diligence to secure that the provisions in question were complied with he shall be acquitted of the offence.

(5) Where the original defendant seeks to avail himself of the provisions of the last foregoing subsection—

- (a) the prosecutor as well as the person whom the original defendant charges with the offence shall have the right to cross-examine him if he gives evidence and any witness called by him in support of his pleas and to call rebutting evidence;
- (b) the court may make such order as it thinks fit for the payment of costs by any party to the proceedings to any other party thereto.

Notice of
Part V.

60.—(1) The provisions of this Part of this Act hereinafter mentioned shall come into operation on the first day of October nineteen hundred and fifty-seven.

(2) The provisions hereinbefore referred to are the following:—

Section 57 (Requirements as to vehicles carrying coal etc. for sale or delivery on sale);

Section 58 (As to sale of coal etc. otherwise than in sacks from a vehicle); and

Section 59 (As to sale in sacks of coal etc. in quantities exceeding two hundredweight).

(3) (a) The Council shall forthwith after the passing of this Act cause public notice to be given of the effect of the said sections by advertisement in two or more newspapers circulating in the county and otherwise in such manner as the Council think fit.

(b) In any proceedings it shall be presumed unless the contrary is proved that the provisions of this subsection have been complied with.

B. Weighing-machines

Drivers of
vehicles to
take them to
weighing-
machines on
request.

61.—(1) The driver of any vehicle in the county loaded with any goods (including coal coke wood fuel or peat fuel) to be sold by reference to the weight of such loaded vehicle shall at the request of the buyer or seller of any such goods or the person on whose behalf the same shall be consigned or of any of their respective agents or of an inspector of weights and measures of the Council or other officer appointed for the purpose by the Council take such vehicle with or without the loading thereof

(3) All charges for carriage made under subsection (2) of this section together with the tolls or fees to be paid for weighing any such vehicle shall be paid by the person requiring the same to be weighed and such charges for carriage shall if demanded be paid before the driver of such vehicle shall be obliged to go out of his way for the purpose of having the same weighed or reweighed.

(5) The provisions of this section shall not apply with respect to any vehicle other than a vehicle loaded with goods to be sold as aforesaid and consigned for delivery within the county.

(7) For the purposes of this section the word "driver" includes the owner and any person in charge of any vehicle.

(a) during ordinary business hours (which expression for the purposes of this section means from eight o'clock in the morning till five o'clock in the afternoon on weekdays other than Saturdays and from eight o'clock in the morning until twelve o'clock noon on Saturdays) wilfully neglect on application duly to weigh any vehicle with or without loading that shall come to the machine kept by him to be weighed:

(c) not deliver to the purchaser of any such loading or any person interested therein on application a ticket or account containing the true weight of such loading;

PART V
—cont.

- (d) give to any person a false ticket or account of the weight of such vehicle or the loading thereof;
- (e) weigh any vehicle knowing that anything has been added to the loading thereof so as to increase the weight of the same or that the wheels thereof have been changed between the time of the same being weighed with its loading and the time of its coming back to be again weighed without its loading and shall not give immediate notice thereof to the person interested therein;
- (f) knowingly assist in or connive at any fraud committed or attempted concerning the weighing of any such vehicle or the loading thereof or shall make or connive at making any false representation of the weight of the same respectively;
- (g) fail to make immediately after the weight of any vehicle with or without loading has been ascertained a true record of the weight thereof and retain such record for a period of six months; or
- (h) issue particulars of any vehicle with or without loading which he has not personally ascertained;

shall be liable to a penalty not exceeding ten pounds and in respect of any subsequent offence to a penalty not exceeding fifty pounds and in respect of any such subsequent offence if the court is of the opinion that such offence was committed with intent to defraud the court may in lieu of or in addition to inflicting a penalty impose any term of imprisonment not exceeding three months:

Provided that paragraphs (a) and (b) of this section shall not impose an obligation upon any person to weigh any vehicle or loading upon a weighing-machine not ordinarily available for the public or of insufficient capacity or otherwise unsuitable.

Penalties on
persons
committing
frauds.

63.—(1) Any person who in regard to the weighing of any vehicle at any weighing-machine in the county—

- (a) at or before the time of weighing any such vehicle shall place or knowingly leave any matter or thing in or about the same other than the proper loading thereof;
- (b) shall alter any ticket denoting the weight of any such vehicle or of the loading of the same;
- (c) shall make or use or be privy to the making or using of any false or fraudulent ticket or knowingly give a false statement to a weighing-machine keeper respecting the weight of any such vehicle or the loading thereof;
- (d) after the weighing of such vehicle with the loading of the same shall remove any part of such loading and afterwards dispose or attempt to dispose of the residue of such loading as being the full loading denoted by such ticket;

- (2) The Council or the local authority may make such reasonable charges as they may determine for and in respect of the use of any such weighbridge or weighing-machine.

PART V
—cont.

(3) Any person shall on payment of the proper charges in respect thereof be entitled to use any of the weighbridges or weighing-machines erected by the Council or any local authority under the provisions of this section.

(4) The powers of this section shall not be exercised in such a manner as to obstruct or interfere with the access to or exit from any station wharf or depot of any railway canal inland navigation passenger road transport or road haulage undertakers.

(5) The Council or the local authority shall not exercise the powers of this section in relation to a trunk road without the consent of the Minister of Transport and Civil Aviation.

(6) No power conferred upon the Council or a local authority by the provisions of this section shall be exercised in such a manner—

(a) as to be at variance with any trust subject to which any land is held managed or controlled by the Council or local authority without an order of the High Court or of the Charity Commissioners or of the Minister of Education or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of the donor or that other person; or

(b) as to contravene any covenant or condition (other than a covenant or condition which was subsisting immediately before the date of the gift or lease to the Council or the local authority) subject to which a gift or lease of any land has been accepted by or granted to the Council or local authority without the consent of the donor grantor lessor or other person entitled in law to the benefit of the covenant or condition.

Local
authority may
provide
weighing-
machines.

66. A local authority may in any premises belonging to or occupied by them provide and maintain weighing-machines for ascertaining the weight of persons and may charge for the use thereof.

Personal
weighing-
machines.

67.—(1) In this section—

the expression “personal weighing-machine” means a weighing-machine in the county constructed or adapted for ascertaining the weight of a person;

the expression “prescribed” means prescribed by the Council by byelaws made under this section;

the expression “stamped” means bearing a stamp of verification such as is authorised for use under the Weights and Measures Acts 1878 to 1936; and

the expressions “in use” and “used” mean used or exposed for use.

(2) The Council may make byelaws—

- (a) generally with respect to the examination on verification and to the inspection of personal weighing-machines;
- (b) for prescribing the distinguishing mark to be affixed to personal weighing-machines approved on verification under this section and the circumstances and conditions in and under which such mark may be affixed or cancelled;
- (c) for prescribing the tests to be applied for the purpose of ascertaining the accuracy and efficiency of personal weighing-machines;
- (d) for prescribing the limits of error to be allowed on the verification and inspection respectively of personal weighing-machines;
- (e) for prescribing the fees to be paid to the Council for the examination and marking of personal weighing-machines submitted for verification or for the examination of such personal weighing-machines submitted as aforesaid as are found to be incorrect or defective.

(3) On and after the expiration of a period of twelve months from the coming into force of any byelaws made under subsection (2) of this section the owner or the person having in his possession or being in charge of any personal weighing-machine which is in use and which is false or unjust beyond the prescribed limits of error to be allowed on inspection shall be liable to a penalty not exceeding forty shillings or in the case of any subsequent offence five pounds and the machine shall be liable to be forfeited.

(4) (a) On and after the expiration of the said period a personal weighing-machine shall not be used unless such machine has been examined and approved by an inspector of weights and measures of the Council and has been marked with the prescribed distinguishing mark by such inspector or unless it has been stamped by any inspector of weights and measures.

(b) On or after the expiration of the said period the owner or the person having in his possession or being in charge of any personal weighing-machine which is in use and which is not so marked or stamped shall be liable to a penalty not exceeding forty shillings or in the case of any subsequent offence five pounds and the machine shall be liable to be forfeited.

(c) The provisions of this subsection shall not apply to a personal weighing-machine owned by a travelling showman and used by him at a pleasure fair if at any time within the three months preceding such use such weighing-machine has been examined and approved by any inspector of weights and measures.

(5) If any person forges counterfeits or (not being an inspector of weights and measures) removes any such mark or stamp as is

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—cont.

referred to in the last foregoing subsection or unlawfully marks or stamps a personal weighing-machine with any such mark or stamp or knowingly exposes for use any such machine on which there is any such forged or counterfeit mark or stamp he shall be liable to a penalty not exceeding five pounds and the machine shall be liable to be forfeited.

(6) (a) Any inspector of weights and measures of the Council may—

- (i) verify any personal weighing-machine submitted for the purpose;
- (ii) at all reasonable times examine inspect and test any personal weighing-machine which is in use;
- (iii) seize and detain any personal weighing-machine which there is reasonable cause to believe may be liable to be forfeited under the provisions of this section;
- (iv) for the purposes referred to in the foregoing subparagraphs (ii) and (iii) enter any premises or place where there is reason to believe that there is a personal weighing-machine in use.

(b) If any person neglects or refuses to produce for such examination inspection and testing any personal weighing-machine which is in use and is in his possession or custody or on his premises or refuses to permit any such inspector of weights and measures to examine inspect or test the same or obstructs the entry of such inspector or otherwise obstructs or hinders him from acting under this section he shall be liable to a penalty not exceeding five pounds or in the case of any subsequent offence ten pounds.

(7) For the purposes of this section—

(a) a personal weighing-machine shall not be deemed to be used unless either—

(i) a charge is made or is proposed to be made for the use of the machine; or

(ii) the machine is kept in any premises or place to which the public have access; and

(b) a personal weighing-machine shall not be deemed to be marked or stamped by reason of its bearing a cancelled mark or stamp.

(8) For the purposes of this section a person shall not be held to be in possession or in charge of a personal weighing-machine by reason solely of the fact that it is situate on his premises by virtue of a licence or agreement under which some other person is responsible for the maintenance of such machine:

Provided that the name and address of such other person shall be clearly marked on such machine and in any such case

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—*cont.*

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—cont.

- (b) all moneys of a capital nature received by the Council whether from the sale of capital assets or otherwise except such as are paid into any capital fund established by the Council under section 1 of the Local Government (Miscellaneous Provisions) Act 1953 or are applied by the Council with due authority to another capital purpose; and
- (c) the appropriate sums provided in each year out of other funds of the Council to comply with the terms and conditions as to repayment attaching to their several borrowing powers or otherwise provided for the repayment of debt:

And except as aforesaid there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys so borrowed or received and of all sums provided by the Council as aforesaid before the date on which the consolidated loans fund is established.

(2) The moneys of the consolidated loans fund shall be used or applied by the Council—

- (a) in the redemption of authorised securities the purchase of bonds or stock for extinction or the repayment of any moneys borrowed by the Council; and
- (b) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Council:

And the moneys of the consolidated loans fund not used or applied in these ways or intended to be so used or applied within a reasonable period shall be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund shall not except with the consent of the Minister be used or applied otherwise than as provided in this section.

(3) There shall also be transferred to the consolidated loans fund such sums as are necessary to meet the interest charges and the financing and other revenue expenses connected with the management of that fund and separate accounts shall be kept of those sums and their application.

(4) The Council may pay into the consolidated loans fund any moneys forming part of any reserve capital renewal and repairs depreciation contingency insurance superannuation or other similar fund (in this section respectively referred to as “the lending fund”) and not for the time being required for the purposes for which the lending fund was established and such moneys shall be deemed to be moneys borrowed by the Council

within the meaning of subsection (1) of this section and shall be used accordingly subject to the following conditions:—

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—cont.

- (a) the moneys so used shall be repaid to the lending fund as and when required for meeting the obligations for which the lending fund was established; and
- (b) there shall be paid out of the consolidated loans fund to the county fund an amount equal to the interest on any moneys so used and for the time being not repaid at such rate per centum per annum as may be determined by the Council to be equal as nearly as may be to the average rate of interest payable by the Council on their current borrowings and in the accounts of the county fund an amount equal to the interest as aforesaid (subject in the case of any of the said funds to any prescribed limit on the amount thereof) shall be credited to the lending fund.

(5) Save as in this section expressly provided all the obligations of the Council to the holders of authorised securities shall continue in force.

(6) (a) The powers conferred by this section shall not be exercised by the Council except in accordance with a scheme made by the Council and approved by the Minister and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

(b) Any scheme approved by the Minister under this section may be altered extended or revoked by a scheme made and approved in like manner as the original scheme.

70.—(1) In addition to any other form of borrowing the Power to Council may exercise any statutory borrowing power by the issue bonds. issue of bonds (in this Act referred to as “ bonds ”) in accordance with the provisions of this Act.

(2) Where the Council raise money by the issue of bonds the following provisions of the Act of 1933 shall apply as if the money had been raised by borrowing on mortgage under that Act and bonds were mortgages within the meaning of that Act:—

- Section 209 (Notice of trusts);
Section 210 (Receipts on behalf of joint holders and infants);
Section 211 (Appointment of receiver);
Section 212 (Repayment of moneys borrowed on mortgage);
Section 213 (Sinking fund);
Section 214 (Adjustments of sinking fund).

(3) The provisions set out in the Fourth Schedule to this Act shall have effect with regard to bonds.

(4) Bonds shall be deemed to be loan capital or funded debt within the meaning of section 8 of the Finance Act 1899.

PART VI
—cont.

(5) The provisions of section 115 of the Stamp Act 1891 (which relates to the composition for stamp duty) shall with the necessary adaptations apply in the case of bonds as if those bonds were stock or funded debt within the meaning of that section.

Expenses of
public
entertainment.

71.—(1) The Council may make reasonable payments for or in connection with—

- (a) refreshments for representatives of the Council local authorities or other bodies or for other persons attending conferences or meetings convened by the Council; and
- (b) the arrangement and conduct of ceremonies relative to or arising out of the statutory functions of the Council.

(2) Section 1 of the Local Authorities (Expenses) Act 1956 shall in relation to the Council have effect as if—

- (a) in paragraph (a) thereof the words “ of any members or officers ” were omitted; and
- (b) in paragraph (b) thereof after the words “ distinguished persons ” there were inserted the words “ residing in or ”.

Interest
warrants
by post.

72.—(1) The Council may give notice to any person being registered as a holder of any authorised security (other than stock) that they intend to send interest to him by post if he does not object and if such person does not within fourteen days from the receipt of such notice give notice to the Council of such objection the Council may from time to time send orders for the payment of interest or warrants by post to the address of such person appearing in the register:

Provided that if such person gives notice to the Council that he desires such orders or warrants to be sent to another person at a given address the Council may from time to time send the same by post to such other person at such address.

(2) Where more persons than one are registered as joint holders of any authorised security any one of them may for the purpose of this section be regarded as the holder of the security unless contrary notice has been given to the Council by any other of them.

(3) The posting by the Council of an order for the payment of interest or a warrant in pursuance of this section shall as respects the liability of the Council be equivalent to the delivery of the order or warrant to the registered holder of the authorised security.

(4) Every order or warrant so sent by post shall be deemed to be a cheque and the Council shall in relation thereto be deemed a banker within the Bills of Exchange Act 1882.

Receipt in
case of minors.

73. If any money is payable by the Council to any employee (other than wages or salary) or creditor or the holder of any

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—*cont.*

Payment of
pension etc.
of person of
unsound mind.

(3) This section applies to any sum payable by the Council to an employee or former employee or pensioner of the Council or the widow or a child of a deceased employee or pensioner by way of salary wages pension superannuation or other allowance gratuity or annuity or by way of repayment with or without interest of contributions made to any superannuation or other fund but the amount to be paid in pursuance of this section to or in respect of any such employee former employee or pensioner shall not exceed one hundred pounds in any year.

Provided that the Council may with the approval of the court of protection exercise the powers of this section in respect of any person notwithstanding that the said period of fourteen days has not expired.

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—cont.

as from the date of the receipt by the Council of the notice cease to be exercisable by the Council in relation to that person unless and until the court of protection withdraws the notice.

(6) The Council shall be discharged from all liability in respect of any payment or application of money effected by them in the exercise of the said power.

As to proof
of continued
existence of
pensioners.

75. Notwithstanding anything in the Local Government Superannuation Acts 1937 to 1953 the Council shall not be required to make any payment by way of superannuation allowance or pension under those Acts or under the Pensions (Increase) Acts 1944 1947 and 1952 or any other superannuation pension compensation or other such payment under any statutory authority to or for the benefit of any person unless satisfactory proof is given to the Council in such manner and at such times as they may from time to time require of the continued existence of such person.

Determination
of sums for
maintenance.

76. In any case in which the Council are empowered to recover the whole or any part of the cost incurred by them—

- (a) in respect of the maintenance or treatment or the maintenance and treatment of any person in any premises which are provided or maintained by the Council or to the cost of the provision or maintenance of which the Council contribute;
- (b) in respect of the maintenance of any person in any premises which are not provided or maintained by the Council or to the cost of the provision or maintenance of which the Council do not contribute; or
- (c) in respect of the maintenance of any child who is boarded out by the Council in any premises;

the Council for the purpose of ascertaining such cost may determine that two or more such premises (being premises used for comparable purposes) shall be regarded as one and that such cost shall be ascertained by reference to the expenses incurred in respect of such premises regarded as one.

Modification
of mortgages
by endorse-
ment under
hand.

77. Notwithstanding anything in any enactment or in any rule of law or otherwise to the contrary where it is agreed between the Council and a person at any time entitled to any mortgage granted by the Council to extend the time for the repayment of the principal moneys secured by such mortgage or to alter the rate of interest payable by the Council on the principal moneys so secured and not repaid or both to extend such time and to alter such rate of interest effect may be given thereto by an endorsement in writing under the hands of such person (or in

PART VI
—*cont.*

Investment of
superannuation
fund.

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—cont.

(6) in the purchase of freehold ground rents or freehold or leasehold land messuages tenements and hereditaments within the United Kingdom provided that as regards leaseholds the term thereof shall have at least sixty years to run; or

(7) upon the security of freehold property freehold ground rents land charges or rentcharges by way of first mortgage up to the limit of two-thirds of the value;

with power of varying such investments from time to time by sale and reinvestment or otherwise:

Provided that no investment shall be made under the powers of paragraph (5) of this section—

(a) unless the company shall have paid interest or dividends thereon (as the case may be) at the rate of at least five per centum per annum for not less than four years prior to the date of investment; and

(b) so long as the value of all the investments made under the said paragraph (5) which form part of the superannuation fund equals or exceeds one-quarter of the total value of the assets of that fund.

B. Financial provisions relating to local authorities

Consolidated
loans fund
of local
authorities.

79. The provisions of section 69 (Consolidated loans fund) of this Act shall extend and apply to a local authority as if—

(a) the local authority were therein referred to in lieu of the Council; and

(b) the general rate fund were therein referred to in lieu of the county fund.

Power to local
authorities
to issue bonds.

80. With the consent of the Minister the provisions of section 70 (Power to issue bonds) of this Act shall extend and apply to a local authority as if—

(a) the local authority were therein referred to in lieu of the Council; and

(b) the financial officer were referred to in lieu of the treasurer in paragraph 4 of the Fourth Schedule to this Act.

Expenses of
public
entertainment
of local
authorities.

81.—(1) The provisions of section 71 (Expenses of public entertainment) of this Act shall extend and apply to a local authority as if the local authority were therein referred to in lieu of the Council.

(2) A local authority which is the council of a borough may pay reasonable expenses in connection with the presentation of the freedom of the borough to persons whom the local authority may resolve to admit as honorary freemen.

82.—(1) A local authority may exercise the powers contained in the provisions of this Act hereinafter mentioned and those provisions shall accordingly have effect with any necessary modifications including the substitution of “local authority” for “Council”. PART VI
—cont.
Application of
certain
sections of
Part VI to
local
authorities.

(2) The provisions hereinbefore referred to are the following:—

- Section 72 (Interest warrants by post);
- Section 73 (Receipt in case of minors);
- Section 74 (Payment of pension etc. of person of unsound mind);
- Section 75 (As to proof of continued existence of pensioners);
- Section 77 (Modification of mortgages by endorsement under hand).

PART VII

MISCELLANEOUS

83.—(1) The court of quarter sessions for the county may direct that any quarter sessions for the county which may be held by adjournment at any place specified in the direction other than the borough of Aylesbury shall be deemed not to be the next quarter sessions for the purposes of section 9 of the Magistrates' Courts Act 1952 in relation to such petty sessional divisions of the county as may be specified in the direction and accordingly in relation to any petty sessional division so specified such adjourned sessions shall be deemed to be a court of quarter sessions for some other place for the purposes of section 10 of the said Act of 1952. Provisions as
to quarter
sessions.

(2) Where it is proposed to hold quarter sessions by adjournment at more than one place other than the said borough the court of quarter sessions for the county may give a separate direction under this section in respect of the sessions held at each such place and any direction given under this section shall remain in force until varied or revoked by the said court.

84.—(1) In any proceedings under any enactment—

- (a) a document purporting to be certified by the clerk of the Council as a copy of a resolution order or report passed or made by the Council or by any committee thereof on a specified date shall be evidence that that resolution order or report was duly passed or made by the Council or that committee on the said date;
- (b) a document purporting to be so certified as a copy of a minute duly drawn up entered and signed in accordance with paragraph 3 of Part V of the Third Schedule to

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—cont.

the Act of 1933 of the proceedings of a meeting of the Council or of any committee thereof on a specified date shall be evidence to the same extent as the original minute;

- (c) a document purporting to be so certified as a copy of the appointment of or of any authority given to an officer of the Council or any committee thereof on a specified date shall be evidence that that appointment or authority was duly made or given by the Council or that committee on the said date.

(2) In this section the expression " officer " includes a servant solicitor or agent.

(3) Section 286 of the Act of 1936 shall cease to apply to the Council.

As to minutes
of Council
meetings etc.

85. Notwithstanding anything contained in paragraph 3 of Part V of the Third Schedule to the Act of 1933 or in any other enactment or rule of law to the contrary the minutes of the proceedings of meetings of the Council or of any committee thereof may be recorded on loose leaves consecutively numbered the minutes of the proceedings of any meeting being signed and each leaf comprising those minutes being initialled at the same or next ensuing meeting of the Council or committee as the case may be by the person presiding thereat and any minutes purporting to be so signed shall be received in evidence without further proof.

Delegation of
powers to
sub-
committees.

86.—(1) A committee lawfully authorised by the Council to exercise any powers of the Council under any enactment may subject to any direction of the Council appoint such sub-committees consisting either wholly or partly of members of the committee as the committee think fit and subject as aforesaid may delegate with or without restrictions or conditions any of their functions to a sub-committee so appointed.

(2) Except in pursuance of powers conferred by any enactment a majority of the members of any such sub-committee shall be members of the Council.

(3) The powers of this section shall be in addition to the powers of any committee of the Council to appoint sub-committees under any other enactment.

Further
powers as to
libraries.

87.—(1) Notwithstanding anything contained in the Public Libraries Acts 1892 to 1919 the powers of a library authority under those Acts in relation to any library provided by them under those Acts within the county shall include—

- (a) the power to provide and lend or permit the use of gramophone records pictures films film strips lantern slides prints engravings and photographs;

PART VII
—cont.

- (b) the power to charge such reasonable sum as the library authority may prescribe for the reservation of an article;
- (c) the power to prescribe a period not being less than seven days within which any article borrowed from such library must be returned thereto;
- (d) the power to recover from any person who fails within such prescribed period to return to such library any article so borrowed such reasonable sum as the library authority may prescribe in respect of each week or portion of a week in which he so fails to return such article together with any expenses incurred by the library authority in sending to such persons notices in respect of such article;
- (e) the power to prohibit any such person from borrowing any other article from any library provided by the library authority under those Acts until such person has paid any such sum as is due to the library authority under paragraph (d) of this subsection;
- (f) the power to prescribe different periods and charges for the purposes of this section in relation to different articles or kinds of articles:

Provided that—

- (i) nothing in this subsection shall be deemed to authorise the library authority to do any act or thing in relation to any work or other subject-matter in or in relation to which copyright may subsist except with the consent of the person in whom the sole right to do or to authorise the doing of that act or thing in relation to that work or subject-matter is for the time being vested under the law relating to copyright;
- (ii) the sums prescribed by the library authority for the purposes of paragraph (d) of this subsection shall not exceed sixpence or such greater sum as may be approved from time to time by the Minister of Education.

(2) In this section—

- (a) the expression "article" includes a book gramophone record picture film film strip lantern slide map plan print engraving or photograph; and
- (b) in relation to a library maintained by two or more authorities in combination or the cost of the maintenance of which is shared by two or more authorities references to the library authority by whom the library is provided shall be construed as references to those authorities.

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—cont.

School
agreements.

88.—(1) Any agreement entered into by or on behalf of the Council with the parent or guardian of a pupil or intended pupil at any secondary school may make provision for the payment by such parent or guardian to the Council of any sum not exceeding ten pounds in the event of the pupil ceasing without the consent of the Council to attend such school before the date fixed by such agreement for the pupil to cease such attendance and the Council shall be entitled without proof of any actual damage incurred by reason of such pupil ceasing to attend such school to recover from such parent or guardian any sum not exceeding the sum specified in the agreement which the court may think fit to award in all the circumstances of the case.

(2) In this section the expression “secondary school” includes—

- (a) a secondary school as defined by section 114 of the Education Act 1944;
- (b) a school in respect of which grants are paid by the Minister of Education under regulations made in pursuance of paragraph (b) of subsection (1) of section 100 of that Act and in which secondary education as defined by section 8 of the Act is provided; and
- (c) an independent grammar school as defined by the said section 114 in which secondary education as defined by section 8 of the said Act is provided.

Refuse dumps.

89.—(1) It shall not be lawful for any authority body or person to deposit or otherwise dispose of or permit the deposit or disposal of any refuse in any place within the county other than a place within the district (if any) in which the refuse was collected or assembled without the consents first obtained in writing of the Council and of the local authority of the district in which such deposit or disposal shall be intended to be made:

Provided that this subsection shall not apply—

- (a) until the expiration of twelve months from the passing of this Act to any deposit of refuse in existence at the passing of this Act; or
- (b) to the deposit or disposal of sewage by any local or other public authority acting under the powers of any Act of Parliament or order having the force of an Act; or
- (c) to the disposal of manure at or on a farm garden or nursery and intended to be used solely for horticultural agricultural or farming purposes; or
- (d) to the deposit or disposal of refuse required solely for industrial purposes; or

- (e) to the tipping of spoil and refuse by the commission for the purpose of constructing widening or maintaining any railway works canal or inland navigation; or
- (f) to the deposit of any soil or material obtained or raised by the commission in executing any dredging operations; or
- (g) to the tipping deposit or disposal of spoil or refuse by statutory undertakers on any lands occupied by them for the general purposes of their undertaking; or
- (h) to the deposit disposal or tipping of spoil or refuse by the conservators of the river Thames in the exercise of their statutory powers as an inland navigation and land drainage authority; or
- (i) to the filling of sand and gravel pits with refuse (other than house refuse or other refuse collected and assembled under the Act of 1936 or the Public Health (London) Act 1936 or sewage or liquids) carried out by mineral undertakers under the terms of a planning permission granted under the Act of 1947; or
- (j) to the deposit or disposal by the mayor aldermen and burgesses of the borough of High Wycombe under and in accordance with a permission granted by the Minister of Health on the twelfth day of October nineteen hundred and fifty under section 35 of the Act of 1947 for the development of land at High Heavens Wood in the rural district of Wycombe for refuse tipping purposes of refuse collected and assembled by them within the borough of High Wycombe; or
- (k) to the deposit or disposal by the Bletchley Urban District Council under and in accordance with a permission granted by the Council on the sixteenth day of December nineteen hundred and fifty-five under the Act of 1947 for the use of land for the tipping of household and other refuse near Newton Longville in the rural district of Winslow of refuse collected and assembled by the Bletchley Urban District Council within the Bletchley urban district.

(2) The Council and the local authority of the district in which such deposit or disposal shall be intended to be made may grant or withhold their consent thereto or may make the granting of their consent subject to such terms and conditions as they think fit and may withdraw any such consent previously given:

Provided that if the Council and the local authority or either of them shall not notify the applicant for any such consent of

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—cont.

their decision upon such application within twenty-eight days after the receipt thereof they shall be deemed respectively to have consented thereto unconditionally.

(3) (a) Any authority body or person aggrieved by the refusal of any such application as aforesaid or by the withdrawal of such consent or by any terms or conditions imposed upon such authority body or person may within twenty-eight days after the date of such refusal or withdrawal or imposition of conditions or such longer period as the Minister may allow appeal to the Minister and the Minister may dismiss or allow the appeal either unconditionally or subject to such conditions as he thinks proper to impose.

(b) The decision of the Minister on an appeal under this subsection shall be final and shall have effect as if it were a decision of the Council and the local authority.

(4) Any person offending against the provisions of subsection (1) of this section or infringing any of the terms or conditions subject to which a consent under that subsection shall have been granted shall be liable to a penalty not exceeding two hundred pounds and in the case of a continuing offence to a daily penalty not exceeding fifty pounds.

(5) In this section—

“refuse” includes trade refuse house refuse filth rubbish dust and other like matter; and

“mineral undertakers” means undertakers engaged in the winning and working of sand or gravel in or on land by surface working.

90.—(1) Any person who for the purpose of obtaining for himself or for any other person any of the benefits or advantages hereinafter mentioned—

(a) knowingly makes to the Council or to a local authority or to any of their employees a false statement or false representation relating to his or that other person's need for the benefit or advantage or ability to pay a rent or make any other payment; or

(b) produces or furnishes or knowingly allows to be produced or furnished to the Council or to a local authority or to any of their employees any document or information relating to the matters aforesaid which he knows to be false in a material particular;

shall be liable to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding four months or to both such fine and imprisonment.

(2) The benefits or advantages hereinbefore referred to are—

(a) the occupation of any house belonging to the Council or to a local authority;

- (b) a rebate of the rent of any such house;
 - (c) a reduction in the amount of any payment due to the Council or a local authority by virtue of the following enactments or of regulations made thereunder or the remission of any such payment:—
 - (i) the Children and Young Persons Act 1933;
 - (ii) the Education Acts 1944 to 1953;
 - (iii) the Children Act 1948;
 - (d) any award grant contribution or payment made by the Council under the Education Acts 1944 to 1953 or under or by virtue of any regulations made under those Acts; or
 - (e) any advance from a local authority or the Council by way of mortgage under the Small Dwellings Acquisition Acts 1899 to 1923 or the Housing Acts 1936 to 1952.
- (3) If any person is convicted of an offence under this section the court may—
- (a) terminate the tenancy of the house of which occupation had been obtained and order possession thereof to be given to the Council or the local authority (as the case may be);
 - (b) order the person convicted to pay to the Council or to the local authority (as the case may be) the amount of the rebate or reduction obtained by him;
 - (c) order the person convicted to make such payments as the court may think just to the Council or the local authority (as the case may be) in respect of—
 - (i) the reduction in the amount of any payment referred to in paragraph (c) of the last foregoing subsection or the remission thereof; or
 - (ii) any award grant contribution or payment referred to in paragraph (d) of that subsection.
- (4) For the purposes of this section the expression “house” includes any part of a house which is occupied or intended to be occupied as a separate dwelling.

91.—(1) Any water rent water rate or water charge payable to a local authority supplying water (hereafter in this section referred to as “the undertakers”) may be demanded and collected together with the general rate and the same books may be used for the said rent rate or charge and the general rate. Water rates and charges.

(2) Notwithstanding the provisions of any other enactment and without prejudice to any other right or remedy of the undertakers any water rent water rate or water charge payable to the

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—cont.

undertakers may be recoverable by the undertakers in a magistrates' court in the same manner and subject to the same provisions in respect of such recovery as the general rate.

(3) There may be included in one and the same complaint information summons or warrant or in any schedule thereto two or more sums payable to the undertakers by any one person in respect of the water rent water rate and water charge and general rate payable by him.

(4) Where the provisions of Part XII of the Third Schedule to the Water Act 1945 (which contains provisions relating to water rates and charges) are incorporated with any local enactment authorising the undertakers to supply water the provisions of subsections (5) (6) and (7) of this section shall have effect in lieu of section 56 of the said Third Schedule.

(5) Where under section 41 of the Local Government Act 1948 an amendment is made in the valuation list for the time being in force the amendment shall for the purpose of calculating the amount due in respect of any water rate payable under section 55 of the Third Schedule to the Water Act 1945 as incorporated with any local enactment have effect retrospectively as from the date as from which under section 42 of the Local Government Act 1948 it has effect for the purpose of calculating the amount due in respect of any general rate.

(6) Notwithstanding anything in the said section 55 with respect to the equality of instalments of a water rate any necessary adjustment shall be made in the instalments of the rates current at the date from which the alteration in the valuation list is deemed to have had or has effect and any subsequent instalments thereof.

(7) If it is found that by reason of the last two foregoing subsections of this section too much or too little has been paid in respect of any water rate the difference shall be repaid or allowed or (as the case may be) shall be paid and may be recovered in the manner in which water rates are recoverable.

(8) In this section "water charge" includes a meter rent.

Application
of certain
provisions of
Part VII to
local
authorities.

92.—(1) The provisions of this Part of this Act hereinafter mentioned shall apply to a local authority and shall have effect with any necessary modifications including the substitution of "local authority" for "Council".

(2) The provisions hereinbefore referred to are the following:—

Section 84 (Evidence of appointments authority etc.);

Section 85 (As to minutes of Council meetings etc.);

Section 86 (Delegation of powers to sub-committees).

PART VIII

PROTECTIVE PROVISIONS

93.—(1) Where pursuant to section 22 (Adjustment of boundaries For of county roads) of this Act the Council or a local authority enter protection of into an agreement with a person having a legal interest in land Postmaster-General. adjoining any road or street for the conveyance to that person of the site of any part of the road or street and immediately before the date on which the site ceases to be part of the road or street there was under in upon over along or across such site any telegraphic line belonging to or used by the Postmaster-General the Postmaster-General shall continue to have the same powers in respect of that line as if such site had remained part of the road or street but nothing in Part I of the Act of 1950 shall have effect in relation to those powers:

Provided that if any person in whom such site is vested desires that such telegraphic line should be altered paragraphs (1) to (8) of section 7 of the Telegraph Act 1878 shall apply to the alteration and accordingly shall have effect subject to any necessary modifications as if references therein to undertakers included references to the said person desiring the alteration.

(2) As between the Council or a local authority and the Postmaster-General nothing in the foregoing subsection shall affect the operation of Part II of the Act of 1950 or the rights of the Council or a local authority and the Postmaster-General thereunder.

(3) Where any highway or part of a highway is stopped up in pursuance of an order made under section 35 (Stopping up and diversion of highways) of this Act the following provisions shall unless otherwise agreed in writing between the highway authority and the Postmaster-General have effect in relation to any telegraphic line belonging to or used by the Postmaster-General which is under in upon over along or across such highway or part of a highway at the time of such stopping up:—

(a) The power of the Postmaster-General to remove the line shall be exercisable notwithstanding the stopping up of the highway or part of the highway so however that the said power shall not be exercisable as respects the whole or any part of the line after the expiration of a period of three months from the date mentioned in subsection (4) of this section unless before the expiration of that period the Postmaster-General has given notice to the highway authority of his intention to remove the line or that part thereof as the case may be;

(b) The Postmaster-General may by notice to the highway authority in that behalf abandon the said line or any

PART VIII
—cont.

part thereof and shall be deemed as respects the line or any part thereof to have abandoned it at the expiration of the said period of three months unless before the expiration of that period he has removed it or given notice of his intention to remove it;

(c) The Postmaster-General shall be entitled to recover from the highway authority the expense of providing in substitution for the line and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the line a telegraphic line in such other place as the Postmaster-General may require;

(d) Where under paragraph (b) of this subsection the Postmaster-General abandons the whole or any part of a telegraphic line it shall vest in the highway authority and the provisions of the Telegraph Acts 1863 to 1954 shall not apply in relation to the line or part in question as respects anything done or omitted after the abandonment thereof.

(4) As soon as the whole or any part of any highway has been stopped up the highway authority shall send by post to the Postmaster-General a notice informing him of such stopping up and the period of three months mentioned in subsection (3) of this section shall commence to run from the date on which such notice is sent.

(5) In this section the expressions “alter” “alteration” and “telegraphic line” have the same meanings as in the Telegraph Act 1878.

For protection
of certain
statutory
undertakers.

94. For the protection of the undertakers the following provisions shall unless otherwise agreed in writing between the appropriate authority and the undertakers concerned apply and have effect:—

(1) In this section unless the subject or context otherwise requires—

“apparatus” means—

(a) in relation to the Eastern Electricity Board the East Midlands Electricity Board the Southern Electricity Board or the Central Electricity Authority electric lines and works (as respectively defined in the Electric Lighting Act 1882) belonging to or maintained by any of such undertakers;

(b) in relation to such of the undertakers as are area gas boards mains pipes or other apparatus belonging to or maintained by any of such boards;

(c) in relation to such of the undertakers as are statutory water undertakers mains pipes or other apparatus belonging to or maintained by any of such undertakers;

and includes any works constructed for the lodging therein of apparatus;

“appropriate authority” means the Council the highway authority or the local authority as the case may be;

“in” in a context referring to apparatus includes under over across along or upon;

“position” includes depth;

“undertakers” means—

the Eastern Electricity Board;

the East Midlands Electricity Board;

the Southern Electricity Board;

the Central Electricity Authority;

the Eastern Gas Board;

the East Midlands Gas Board;

the North Thames Gas Board;

the Southern Gas Board; and

the statutory water undertakers whose undertakings or part of whose undertakings are situate in the county;

or any of them:

- (2) For the purposes of section 18 (Prohibition of building until street defined) of this Act land shall not be deemed to be occupied in connection with a building by reason only of the existence of apparatus in such land:
- (3) Nothing in the said section 18 or in section 19 (Prohibition of building until street formed and sewered) of this Act shall prevent the undertakers from beginning to erect or proceeding with the erection for the purposes of their undertaking of apparatus (including an electricity sub-station a feeder pillar pressure governor or meter house) on land abutting on any new street before in the case of the said section 18 such new street is defined or in the case of the said section 19 such new street is constructed or sewered in accordance with street byelaws:
- (4) Whenever the appropriate authority in the exercise of the powers of section 22 (Adjustment of boundaries of county roads) of this Act shall give up land forming part of a road in exchange for other land and there is

PART VIII
—cont.

in such first-mentioned land any apparatus the appropriate authority shall give notice in writing to the undertakers of such exchange with a plan showing the position and dimensions of the portion of the road so exchanged and the undertakers shall notwithstanding any agreement entered into under the said section continue to have the same powers and rights in respect of any apparatus remaining in the land previously forming the site of the road as if such land had continued to be part of the road or the undertakers may and if reasonably so required by the appropriate authority shall alter the position of such apparatus to or provide and lay or place new apparatus in such other position in the road as altered under the said powers as may be reasonable:

- (5) Whenever by virtue of the provisions of section 35 (Stopping up and diversion of highways) of this Act any highway or part of a highway in which any apparatus is situate is stopped up or diverted the undertakers shall notwithstanding such stopping up or diversion continue to have the same powers and rights in respect of any apparatus remaining in the highway or part of a highway so stopped up or diverted as if it had remained a highway or may and if reasonably so required by the appropriate authority shall—

(i) remove the apparatus and relay or replace it in the highway (if any) substituted for the highway or part of a highway so stopped up or diverted or in such other position as the undertakers may reasonably determine; or

(ii) provide and lay or place other apparatus in such substituted highway or in such other position as aforesaid in lieu of such existing apparatus:

- (6) The appropriate authority shall repay to the undertakers the reasonable expenses incurred by the undertakers of or in connection with—

(a) the alteration of the position of any apparatus and the provision laying or placing of new apparatus under paragraph (4) of this section; or

(b) the removal and relaying or replacing of any apparatus and the provision and laying or placing of any new apparatus under the provisions of paragraph (5) of this section;

and the reasonable costs of and incidental to—

(i) the cutting off of any apparatus from any other apparatus; and

(ii) any other work or thing rendered reasonably necessary in consequence of any such operations as are referred to in this paragraph:

PART VIII
 —*cont.*

Provided that subsections (3) and (4) of section 23 of the Act of 1950 (which imposes limitations on undertakers' rights to payment) shall so far as applicable extend and apply to any payment to be made by the appropriate authority under sub-paragraph (a) or (b) of this paragraph as if the works hereinbefore in this paragraph mentioned were such undertakers' works as are referred to in the said subsection (3) and as if in that subsection for the words " specified as so necessary in a specification of the works settled under Part I of the Fourth Schedule to this Act or agreed so to be by the promoting authority " there were substituted the words " agreed or settled by arbitration under section 94 (For protection of certain statutory undertakers) of the Buckinghamshire County Council Act 1957 ":

- (7) Nothing in the following sections of this Act shall relieve the appropriate authority or any person acting with the consent of the appropriate authority from liability for damage caused by them to any apparatus in the exercise of the powers of the said sections and the appropriate authority or such person shall so exercise those powers as not to render unreasonably inconvenient the access to any apparatus:—

Section 37 (Milk stands in roads);

Section 65 (Power to erect weighbridges):

- (8) Nothing in the following sections of this Act:—

Section 46 (For preventing obstruction to streams by culverts etc.);

Section 47 (Cleansing of rivers and streams);

Section 48 (Entry for purposes of last two foregoing sections);

shall authorise the appropriate authority to execute any works in under over across along or upon any operational lands within the meaning of the Act of 1947 of the undertakers without the consent of the undertakers concerned but such consent shall not be unreasonably withheld:

- (9) (a) Any difference which may arise between the appropriate authority and the undertakers under this section shall be referred to arbitration;
- (b) In settling any difference under this section the arbitrator may if he thinks fit require the appropriate authority to

PART VIII
—cont.

execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the apparatus is used.

For protection
of
Hammersmith
Metropolitan
Borough
Council and
others.

95. For the protection of the mayor aldermen and councillors of the metropolitan borough of Hammersmith (hereinafter referred to as "the borough council") and W. W. Drinkwater (Willesden) Limited (hereinafter referred to as "the owners" which expression includes their successors in title or other the owners and occupiers for the time being of the lands referred to in this section) the following provisions shall have effect:—

- (1) The provisions of section 89 (Refuse dumps) of this Act shall not for a period of six years from the passing of this Act apply to the deposit or disposal by the owners in any existing or future excavation upon the lands in the parish of Denham in the rural district of Eton in the county belonging to them and coloured pink on the signed plan of refuse collected and assembled by the borough council or by the mayor aldermen and councillors of the metropolitan borough of Fulham or of the metropolitan borough of Saint Marylebone and delivered to the borough council:

Provided that the consolidated level of the refuse so deposited or disposed of conforms to the contours of the adjacent land:

- (2) In and for the purposes of this section "the signed plan" means the plan signed in triplicate by Richard Edward Millard on behalf of the Council by Horace Slim on behalf of the borough council and by Elsie Louisa Drinkwater on behalf of the owners.

For protection
of Lambeth
Metropolitan
Borough
Council.

96. For the protection of the mayor aldermen and councillors of the metropolitan borough of Lambeth (hereinafter referred to as "the borough council") and Inns & Company Limited (hereinafter referred to as "the owners" which expression includes their successors in title or other the owners and occupiers for the time being of the lands referred to in this section) the following provisions shall have effect:—

- (1) The provisions of section 89 (Refuse dumps) of this Act shall not for a period of seven years from the passing of this Act apply to the deposit or disposal by the owners in any existing or future excavation upon the lands at Bulstrode Park in the parish of Gerrards Cross in the rural district of Eton in the county belonging to them and coloured pink on the signed plan:

Provided that the consolidated level of the refuse so deposited or disposed of conforms to the contours of the adjacent land:

PART VIII
—*cont.*

(2) The following sections of the Slough Corporation Act 1949 are hereby repealed:—

Section 105 (Registration of hairdressers and barbers and their premises).

“ Eton Council ” means the Eton Rural District Council.

The Third Schedule (Apportionment and recovery of expenses of constructing sewers).

G

PART VIII
—cont.

of certain provisions of Act) of and the First Schedule to this Act the following sections shall apply to the Eton district and be exercisable by the Eton Council as from the date of this Act without the Eton Council adopting the said sections as provided by the said section 6:—

Section 16 (Loans for erection etc. of buildings);

Section 26 (Urgent repairs of private streets);

Section 50 (Power to order alteration of domestic chimneys).

(4) The following sections of the Eton Act are hereby repealed :—

Section 5 (Urgent repairs of private streets);

Section 20 (Power to order alteration of domestic chimneys);

Section 33 (Development of land);

Section 34 (Loans for erection etc. of buildings);

Section 36 (Undertakings and agreements binding successive owners);

Section 44 (Dividend warrants by post);

Section 45 (Receipts in case of minors);

Section 47 (Consolidated loans fund);

Section 63 (In executing works for owner Council liable for negligence only).

PART IX

GENERAL

Protection of
members and
officers from
personal
liability.

Liability of
Council for
work done in
default or by
request.

99. Section 265 of the Public Health Act 1875 shall apply to the Council and a local authority as if any reference in that section to the said Act of 1875 included a reference to this Act.

100.—(1) Where under any enactment—

(a) the Council require any person (in this section referred to as “the defaulter”) to execute any work or take any action; and

(b) in default or at the request of the defaulter the Council or any of their officers execute the work or take the action;

then in the absence of negligence on the part of the Council or of any such officer or of any contractor employed by them or him—

(i) the Council shall not as between themselves and the defaulter be liable to pay any damages in respect of or consequent upon the execution of the work or taking of the action; and

(ii) any such damages as aforesaid paid by the Council to any other person shall be deemed to be part of the expenses payable by the defaulter and shall be recoverable accordingly.

PART IX
—*cont.*

(2) In this section the expression “ damages ” includes penalties costs and charges.

101. Where in pursuance of this Act the Council or a local authority give their approval or consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required approval or consent and the provisions of this section shall mutatis mutandis apply to conditions imposed by any highway authority under any provision of this Act.

102. Proceedings in respect of an offence created by or under Restriction on this Act (except Part V (Weights and measures) thereof) shall right to not without the written consent of the Attorney-General be taken' prosecute. by any person other than a party aggrieved or the Council or the local authority as the case may be.

103. Where under the provisions of any enactment the Council shall execute any works of common benefit to two or more buildings belonging to different owners the expenses which under those enactments or any of them are recoverable by the Council from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the Council or in case of dispute by a magistrates' court.

104. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted.

105. When any compensation costs damages or expenses is or Compensation are by this Act directed to be paid and the method for determining how to be the amount thereof is not otherwise provided for such amount determined. shall in case of dispute be ascertained in the manner provided by subsection (2) of section 278 of the Act of 1936.

106. As respects byelaws made under this Act the confirming authority for the purpose of section 250 of the Act of 1933 shall be the Board of Trade except that in the case of byelaws made under section 52 (Hairdressers and barbers) of this Act the confirming authority shall be the Minister.

PART IX
—cont.

Appeals.

107.—(1) Section 300 of the Act of 1936 shall apply with respect to appeals to a magistrates' court under any enactment in this Act as it applies with respect to appeals to a court of summary jurisdiction under any enactment in that Act and sections 301 and 302 of that Act shall apply accordingly.

(2) Where any requirement refusal or other decision of the Council or a highway authority or local authority against which a right of appeal is conferred by this Act—

- (a) involves the execution of any work or the taking of any action; or
- (b) makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of the requirement refusal or decision or to use any premises for any purpose for which they were lawfully used up to that time;

then until the time for appealing has expired or when an appeal is lodged until the appeal is disposed of or withdrawn or fails for want of prosecution—

- (i) no proceedings shall be taken in respect of any failure to execute the work or take the action nor shall the Council or highway authority or local authority themselves execute the work or take the action; and
- (ii) that person may carry on that business and use those premises for that purpose.

Local
inquiries.

108.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act.

(2) Subsections (2) to (5) of section 290 of the Act of 1933 shall apply in relation to any such inquiry and for that purpose the definition of the expression "department" in subsection (8) of that section shall include any Minister of the Crown having functions under this Act as well as the Ministers therein mentioned.

(3) In this section the expression "Minister of the Crown" has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act 1946.

Application of
provisions of
Act of 1936.

109. The sections of the Act of 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto and as if the expressions "local authority" and "council" included the Council and any local authority:—

Section 271 (Interpretation of "provide");

Section 275 (Power of local authority to execute certain work on behalf of owners or occupiers);

PART IX
—*cont.*

Provided that—

- (a) the said sections 275 276 277 287 289 291 294 295 and 329 shall only apply to the provisions contained in Part III (Highways) and Part IV (Public health) of this Act;
- (b) the said section 293 shall not apply to the sections of this Act hereinafter referred to namely:—
- Section 65 (Power to erect weighbridges);
- Section 66 (Local authority may provide weighing-machines); and
- Section 87 (Further powers as to libraries).

110. In arbitrations under a provision of this Act mentioned in the first column of the following table the reference shall be to a single arbitrator to be appointed by agreement between

PART IX
—cont.

the parties or in default of agreement by the person respectively mentioned in the second column of that table on the application of any party after giving notice in writing to the other party or parties :—

1	2
Provision of Act	Person appointing arbitrator
Subsection (8) of section 35 (Stopping up and diversion of highways)	The Minister of Transport and Civil Aviation.
Subsection (4) of section 46 (For preventing obstruction to streams by culverts etc.)	The Minister of Agriculture Fisheries and Food.
Subsection (3) of section 47 (Cleansing of rivers and streams)	The Minister of Agriculture Fisheries and Food.
Subsection (2) of section 48 (Entry for purposes of last two foregoing sections)	The Minister of Agriculture Fisheries and Food.

Application of certain provisions of Part IX to local authorities.

111.—(1) The provisions of this Part of this Act hereinafter mentioned shall apply to a local authority and those provisions shall accordingly have effect with any necessary modifications including the substitution of—

- (a) “ local authority ” for “ Council ”; and
- (b) “ general rate fund ” for “ county fund ”.

(2) The provisions hereinbefore referred to are the following:—

- Section 100 (Liability of Council for work done in default or by request);
- Section 103 (Apportionment of expenses in case of joint owners).

Saving for powers of Treasury.

112. It shall not be lawful to exercise the powers of borrowing conferred by this Act otherwise than in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

Saving for town and country planning.

113. This Act shall be deemed to be an enactment passed before and in force at the passing of the Act of 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Costs of Act.

114. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council.

SCHEDULES

FIRST SCHEDULE

Sections 5 6.

PART I

SECTIONS OF THIS ACT WHICH MAY BE ADOPTED BY A RURAL DISTRICT COUNCIL IN RESPECT OF THEIR DISTRICT OR A PART THEREOF

Part	Section and marginal note
Part II (Lands) ...	Section 8 (Further powers for acquisition of lands). Section 16 (Loans for erection etc. of buildings).
Part III (Highways)	Section 18 (Prohibition of building until street defined). Section 19 (Prohibition of building until street formed and sewered). Section 20 (Termination of new streets). Section 25 (Means of access to buildings). Section 26 (Urgent repairs of private streets). Section 38 (Attachment of street lamps brackets etc.).
Part IV (Public health)	Section 50 (Power to order alteration of domestic chimneys). Section 51 (Noise nuisance).

PART II

RESOLUTION OF ADOPTION

1. A resolution of adoption shall not be effective unless passed by a majority of the whole number of the members of the rural district council (hereinafter in this schedule referred to as "the rural council") at a meeting thereof.

2. One month at least before the meeting of the rural council special notice of the meeting and of the intention to propose the resolution shall be given to every member of the rural council and such notice shall also be inserted once at least in one or more of the newspapers circulating within the district in each of two successive weeks.

3. A resolution of adoption after being passed shall be published by advertisement in some one or more newspapers circulating within the district and may also be published otherwise in such manner as the rural council think sufficient for giving notice thereof to all persons interested.

4. A copy of the resolution of adoption shall be sent to the Minister and to the Secretary of State.

5. The resolution of adoption shall come into operation at such time not being less than one month after the first publication of the advertisement as may be fixed by the rural council.

SECOND SCHEDULE

Sections 5 7. SECTIONS OF THIS ACT WHICH MAY BE APPLIED TO A RURAL DISTRICT COUNCIL BY ORDER OF THE MINISTER IN RESPECT OF THEIR DISTRICT OR A PART THEREOF

Part	Section and marginal note
Part IV (Public health)	Section 43 (Recovery of expenses of sewerage public highway).
	Section 44 (Recovery of expenses of sewerage prospective street).
	Section 45 (Prevention of evasion of liabilities under last two foregoing sections).

THIRD SCHEDULE

Sections 43
44 45.

APPORTIONMENT AND RECOVERY OF EXPENSES OF CONSTRUCTING SEWERS

1. The sum apportionable shall not exceed the sum certified by the surveyor to be at the relevant date the average cost per lineal yard of providing a public sewer having an internal diameter of nine inches in a private street in a district multiplied by the extent in lineal yards (as so certified) of the sewer or length of sewer in question.

2. The expenses incurred by the local authority not exceeding the sum so apportionable shall be apportioned by the local authority on the premises fronting adjoining or abutting on the street or part of the street in question according to the frontages of the respective premises as existing at the relevant date:

Provided that no sum shall be apportioned on any premises in contravention of any agreement between the local authority and the owner of the premises and any sum which but for this proviso would have been apportioned on any premises shall be deducted from the aggregate sum to be apportioned under this paragraph.

3. As soon as the apportionment has been made the local authority shall serve on the owners of the several premises affected notice of the sums respectively apportioned to them and the notice shall state the right of appeal conferred by the next following paragraph.

4. Any person aggrieved by an apportionment under this schedule may appeal to a magistrates' court and may on the appeal dispute the correctness of the surveyor's certificate as well as any other matter affecting the validity or correctness of the apportionment.

5. If the court finds on any such appeal that the aggregate sum apportioned is excessive or that the apportionment thereof is erroneous the court—

(a) shall order the local authority to revise not only the sum apportioned to the appellant but also the sums apportioned to the owners of the other premises affected and to submit the revised apportionment to the court for approval; and

(b) may if satisfied that the owners of all premises affected have had due notice of the proceedings and an opportunity of being heard approve any such revised apportionment either without amendment or with such amendments as it thinks just.

6. Whenever a new building requiring foul water drainage is erected after the relevant date on any premises on which a sum has been or is thereafter apportioned under this schedule that sum shall be recoverable by the local authority subject to and in accordance with the following provisions:—

3RD SCH.
—cont.

- (a) The said sum shall be recoverable to an extent proportionate to the frontage on the street or part of the street of the site of the new building and the land occupied therewith:

Provided that where a sum has become payable under subparagraph (c) of this paragraph in respect of the frontage of the site of a new building and land occupied therewith no further sum shall be recoverable in respect of the same length of frontage or any part thereof by reason of the erection of another new building on that site or that land;

- (b) At any time after whichever of the following events last occurs (that is to say):—

(i) the erection of the new building; or

(ii) the expiration of the time for appealing against the apportionment or if an appeal is brought within that time the final determination of the appeal;

the local authority may serve on the owner for the time being of the new building a demand for payment of the amount recoverable together with interest thereon from the date of the demand:

Provided that where the drains of the new building are at the time of its erection made to communicate with a sewer other than the sewer the expenses of the construction of which are apportioned no such demand shall be served in respect of the building unless and until the drains thereof are made to communicate with the last-mentioned sewer;

- (c) As from the date of the service of the said demand the amount recoverable together with interest thereon from that date until payment thereof shall be payable by the owner on whom the demand is served and shall be charged on the new building and the land occupied therewith and on all estates and interests therein;

- (d) The rate of interest chargeable under this paragraph shall be such rate as the local authority may determine not exceeding the maximum rate fixed by the Minister for the purpose of section 291 of the Act of 1936 at the time when the said demand is served or if different maximum rates are then so fixed the highest of those rates.

7.—(1) If any person from whom any sum becomes recoverable under the last preceding paragraph proves that by reason of the length of frontage of the land occupied with the building in respect of which the sum is so recoverable the amount of that sum is disproportionate to the benefit accruing to the premises the local authority may remit such part of that sum as they may think just but in that event if another new building is subsequently erected on the said land the said paragraph shall apply to that other building as if the first-mentioned building had not been erected:

3RD SCH.
—cont.

Provided that the amount recoverable in respect of that other building shall not exceed the amount remitted.

(2) Any person aggrieved by a decision of the local authority with respect to any such remission may appeal to a magistrates' court.

8.—(1) The sum apportioned on any premises under this schedule shall for the purposes of section 15 of the Land Charges Act 1925 be deemed to be a charge on the premises notwithstanding that it is not immediately recoverable.

(2) Where the whole or part of the sum so deemed to be a charge (hereinafter in this sub-paragraph referred to as "the provisional charge") becomes actually charged on the whole or part of the premises under the foregoing provisions of this schedule—

(a) within fourteen days the registration of the provisional charge under the said section 15 shall be cancelled and the actual charge shall be registered under that section as from the date on which the provisional charge was registered;

(b) where a part only of the said sum has become actually charged on a part of the premises the remainder of that sum shall be deemed to be a charge on the remainder of the premises notwithstanding that it is not immediately recoverable and shall be registered accordingly within the said fourteen days under the said section as from the said date and the foregoing provisions of this sub-paragraph shall apply thereto accordingly.

9. For the purposes of this schedule—

(a) a building shall be deemed to be a new building erected after the relevant date unless its erection was completed before that date;

(b) the following alterations and extensions shall be deemed to be the erection of a new building (that is to say):—

(i) the re-erection wholly or partially of any building of which an outer wall is pulled down (otherwise than in consequence of fire or other accident) either completely or to such an extent that the part of that wall remaining is less than half the previous height of the building (the height being measured from ground level to the highest point of the building);

(ii) the conversion into a house of any building not originally constructed for human habitation;

(iii) the conversion of any premises into a factory shop or place of public resort;

(iv) any extension by reason whereof the area occupied by the site of the building will (with any previous extension made since the relevant date) be increased by an area of more than one-eighth or in the case of a building constructed for agricultural purposes one-quarter of that occupied by the site of the building before that date;

3RD SCH.
—cont.

(ii) in relation to an apportionment under section 44 (Recovery of expenses of sewerage prospective street) of this Act in respect of land becoming a street the date on which the street was laid out;

FOURTH SCHEDULE

PROVISIONS AS TO BONDS

2. (a) Bonds may be issued at such price and at such rates of interest as the issuing authority may from time to time determine:

(b) The nominal amount of bonds issued shall not exceed in the aggregate according to the price of issue such amounts as will together produce the actual amount of money for the time being authorised to be borrowed by the issuing authority.

3. Bonds shall be repayable at par (unless the same shall have been previously cancelled by purchase in the open market or by agreement with the bondholder) at the place and on the dates specified in the certificates issued in respect of the bonds and no interest shall be payable thereon in respect of any period after the date upon which the bond is repayable.

(2) The register shall contain the following particulars:—

(a) the name and address and description of each holder a statement of the denomination of the bonds held by him the price at which and the periods for which they are issued and the numbers and dates of the certificates issued to him as hereinafter provided;

(b) the date of registration of each holder and the date on which he ceased to be so registered.

(3) The register shall be prima facie evidence of any matter entered therein in accordance with the provisions of this Act and of the title of the persons entered therein as holders of bonds.

4TH SCH.
—cont.

5.—(1) The issuing authority shall issue to each holder of a bond a certificate in respect thereof duly numbered and dated and specifying the denomination of the bond and the period for which it is issued.

(2) If a certificate is worn out or damaged the issuing authority on the production thereof may cancel it and issue a new certificate in lieu thereof.

(3) If a certificate is lost or destroyed the issuing authority on proof thereof to their satisfaction and if they so require on receiving an indemnity against any claims in respect thereof may give a new certificate in lieu of the certificate lost or destroyed.

(4) An entry of the issue of a substituted certificate shall be made in the register.

(5) A certificate shall be in the following form or in a form substantially to the like effect:—

No.....

Date.....

.....per centum.....bond
repayable at par on the.....19.....
at.....

This is to certify that
of

is the registered holder of a bond for
pounds (£) issued by the
under the Buckinghamshire County Council Act 1957 at

The seal of the
was hereunto affixed in the presence of }

Clerk (Town clerk).

6. The certificate shall be prima facie evidence of the title of the person therein named his executors administrators or assigns to the bond therein specified but the want of a certificate if accounted for to the satisfaction of the issuing authority shall not prevent the holder of the bond from disposing of and transferring the bond.

7.—(1) The transfer of a bond shall be by deed in the following form or in a form substantially to the like effect:—

FORM OF DEED OF TRANSFER

I

in consideration of the sum of
paid by
(hereinafter called “the transferee”) do hereby assign and
transfer to the transferee.....

To hold unto the transferee his executors administrators
and assigns subject to the several conditions on which I held
the same immediately before the execution hereof

And I the transferee do hereby agree to accept and take the said
.....subject to the conditions
aforesaid.

As witness our hands and seals this day of
nineteen hundred and

(2) A bond may be transferred in whole or in part so however that any part transferred shall not be for an amount other than an amount for which a bond may be issued by the issuing authority.

(3) The deed of transfer shall be delivered to and retained by the issuing authority and the issuing authority shall enter a note thereof in a book to be called the " Register of transfers of bonds " and shall endorse on the deed of transfer a notice of that entry.

(4) The issuing authority shall upon receipt of the deed of transfer duly executed and properly stamped together with the certificate issued in respect of the bond enter the name of the transferee in the register and shall issue a new certificate or certificates to the transferee or to the transferor and transferee as the case may require.

(5) Until the deed of transfer and the certificate have been delivered to the issuing authority as aforesaid the issuing authority shall not be affected by the transfer and the transferee shall not be entitled to receive any payment of interest on the bond.

(6) The issuing authority before registering a transfer of a bond may if they think fit require evidence by statutory declaration or otherwise of the title of any person claiming to make the transfer.

8. The issuing authority may close the register for a period not exceeding thirty days immediately before the date for the payment of any interest on the bonds and notwithstanding the receipt by the issuing authority during those periods of any deed of transfer the payment of interest next falling due may be made to the persons registered as holders of the bonds on the date of the closing of the register.

9.—(1) Any person becoming entitled to a bond by reason of the death or bankruptcy of a holder or by any lawful means other than a transfer may by the production of such evidence of title as the issuing authority may require either be registered as holder of the bond or instead of being himself registered may make such transfer of the bond as the holder could have made and the issuing authority shall issue a certificate accordingly.

(2) Until such evidence as aforesaid has been furnished to the issuing authority they shall not be affected by the transmission of the bond and no person claiming by virtue thereof shall be entitled to receive any payment of interest thereon.

(3) Where two or more persons are registered as holders of a bond they shall be deemed to be joint holders with right of survivorship between them.

10. The issuing authority before paying any interest on any bonds may if they think fit require evidence by statutory declaration or otherwise of the title of any person claiming a right to receive the interest.

11.—(1) Unless the holder of a bond otherwise requests the issuing authority may pay the interest thereon by posting a warrant to the holder at his address as shown on the register.

4TH SCH.
—cont.

(2) The posting by the issuing authority of an interest warrant addressed to a holder as aforesaid shall as respects the liability of the issuing authority be equivalent to the delivery of the warrant to the holder himself.

12. The production to the issuing authority of any document which is by law sufficient evidence of probate of the will or letters of administration of the estate or confirmation as executor of a deceased person having been granted to some person shall notwithstanding anything in this schedule be accepted by the issuing authority as sufficient evidence of the grant.

Table of Statutes referred to in this Act

Short title	Session and chapter
Lands Clauses Consolidation Act 1845 ...	8 & 9 Vict. c. 18.
Towns Improvement Clauses Act 1847 ...	10 & 11 Vict. c. 34.
Public Health Act 1875 ...	38 & 39 Vict. c. 55.
Local Loans Act 1875 ...	38 & 39 Vict. c. 83.
Weights and Measures Act 1878 ...	41 & 42 Vict. c. 49.
Telegraph Act 1878 ...	41 & 42 Vict. c. 76.
Summary Jurisdiction Act 1879 ...	42 & 43 Vict. c. 49.
Electric Lighting Act 1882 ...	45 & 46 Vict. c. 56.
Bills of Exchange Act 1882 ...	45 & 46 Vict. c. 61.
Weights and Measures Act 1889 ...	52 & 53 Vict. c. 21.
Public Health Acts Amendment Act 1890	53 & 54 Vict. c. 59.
Stamp Act 1891 ...	54 & 55 Vict. c. 39.
Private Street Works Act 1892 ...	55 & 56 Vict. c. 57.
Finance Act 1899 ...	62 & 63 Vict. c. 9.
Public Health Acts Amendment Act 1907	7 Edw. 7 c. 53.
Ministry of Transport Act 1919 ...	9 & 10 Geo. 5 c. 50.
Acquisition of Land (Assessment of Compensation) Act 1919	9 & 10 Geo. 5 c. 57.
Trustee Act 1925 ...	15 Geo. 5 c. 19.
Land Charges Act 1925 ...	15 Geo. 5 c. 22.
Roads Improvement Act 1925 ...	15 & 16 Geo. 5 c. 68.
Public Health Act 1925 ...	15 & 16 Geo. 5 c. 71.
Local Government Act 1929 ...	19 & 20 Geo. 5 c. 17.
Land Drainage Act 1930 ...	20 & 21 Geo. 5 c. 44.
Children and Young Persons Act 1933 ...	23 Geo. 5 c. 12.
Local Government Act 1933 ...	23 & 24 Geo. 5 c. 51.
Public Health Act 1936 ...	26 Geo. 5 & 1 Edw. 8 c. 49.
Public Health (London) Act 1936 ...	26 Geo. 5 & 1 Edw. 8 c. 50.
Trunk Roads Act 1936 ...	1 Edw. 8 & 1 Geo. 6 c. 5.
Local Government Superannuation Act 1937	1 Edw. 8 & 1 Geo. 6 c. 68.
London Passenger Transport Act 1938 ...	1 & 2 Geo. 6 c. xcii.
Pensions (Increase) Act 1944 ...	7 & 8 Geo. 6 c. 21.
Education Act 1944 ...	7 & 8 Geo. 6 c. 31.
Water Act 1945 ...	8 & 9 Geo. 6 c. 42.
Trunk Roads Act 1946 ...	9 & 10 Geo. 6 c. 30.
Ministers of the Crown (Transfer of Functions) Act 1946	9 & 10 Geo. 6 c. 31.
Borrowing (Control and Guarantees) Act 1946	9 & 10 Geo. 6 c. 58.

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Short title	Session and chapter
Pensions (Increase) Act 1947	10 & 11 Geo. 6 c. 7.
Town and Country Planning Act 1947 ...	10 & 11 Geo. 6 c. 51.
Local Government Act 1948	11 & 12 Geo. 6 c. 26.
Children Act 1948	11 & 12 Geo. 6 c. 43.
Gas Act 1948	11 & 12 Geo. 6 c. 67.
Lands Tribunal Act 1949	12 & 13 Geo. 6 c. 42.
Civil Aviation Act 1949	12 & 13 Geo. 6 c. 67.
Slough Corporation Act 1949	12 & 13 Geo. 6 c. xxxviii.
National Parks and Access to the Countryside Act 1949	12 13 & 14 Geo. 6 c. 97.
Public Utilities Street Works Act 1950 ...	14 Geo. 6 c. 39.
Eton Rural District Council Act 1950 ...	14 Geo. 6 c. lxii.
Pensions (Increase) Act 1952	15 & 16 Geo. 6 & 1 Eliz. 2 c. 45.
Magistrates' Courts Act 1952	15 & 16 Geo. 6 & 1 Eliz. 2 c. 55.
Local Government (Miscellaneous Provisions) Act 1953	1 & 2 Eliz. 2 c. 26.
Town and Country Planning Act 1954 ...	2 & 3 Eliz. 2 c. 72.
Food and Drugs Act 1955	4 Eliz. 2 c. 16.
Local Authorities (Expenses) Act 1956 ...	4 & 5 Eliz. 2 c. 36.

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